

CHAPTER 51.

An Act to consolidate the enactments relating to
Education and certain enactments relating to the
Employment of Children and Young Persons.

[19th August 1921.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows:—

PART I.

CENTRAL AND LOCAL EDUCATION AUTHORITIES.

Central Authority.

Central
authority.

1. The Board of Education shall continue to be the
Department of Government charged with the superin-
tendence of matters relating to education in England and
Wales.

Consultative
committee.

2.—(1) There shall continue to be a consultative
committee for advising the Board of Education on any
matters referred to the committee by the Board constituted
in accordance with the Order in Council, dated the
twenty-second day of July nineteen hundred and twenty,
made under section four of the Board of Education Act,
1899.

62 & 63 Vict.
c. 33.

(2) His Majesty in Council may by order alter the
constitution of the consultative committee, so, however,
that it shall always consist as to not less than two-thirds
of the members thereof of persons qualified to represent
the views of universities and other bodies interested in
education; but where it is proposed to make any such
order, a draft thereof shall be laid before each House of
Parliament for not less than four weeks during which
that House is sitting before it is submitted to His
Majesty in Council.

Local Education Authority.

- 3.—(1) For the purposes of elementary education— Local education authorities.
- (a) the council of every county borough as respects their county borough;
 - (b) the council of a borough with a population of over ten thousand according to the census of nineteen hundred and one as respects their borough;
 - (c) the council of an urban district with a population of over twenty thousand according to that census as respects their district; and
 - (d) the council of every county as respects their county (excluding the area of any such borough or urban district);

shall be the local education authority.

- (2) For the purposes of higher education—
- (a) the council of a county as respects their county; and
 - (b) the council of a county borough as respects their borough;

shall be the local education authority, but the councils of non-county boroughs and urban districts, though not local education authorities for higher education, shall have the powers as respects higher education given under this Act.

(3) If any question arises whether any purpose for which a council wish to exercise any powers under this Act is a purpose of the provisions of this Act relating to elementary education or of those relating to higher education, that question shall be referred to and determined by the Board of Education, and their decision shall be conclusive on the matter.

(4) Where before the commencement of this Act the 2 Edw. 7. c. 42.
council of a non-county borough or urban district have, in pursuance of section twenty of the Education Act, 1902, relinquished any of their powers or duties, nothing in this section shall affect the effect of such relinquishment.

Education
committees.

4.—(1) Every council having powers under this Act shall have an education committee or education committees constituted in accordance with this Act :

Provided that a council having powers under this Act as respects higher education only, shall not be obliged to have an education committee if they determine that an education committee is unnecessary in their case.

9 & 10 Geo. 5.
c. 91. (2) Subject to the provisions of subsection (2) of section seven of the Ministry of Agriculture and Fisheries Act, 1919—

(a) all matters relating to the exercise by the council of their powers under this Act, or of any powers connected with education conferred by or under any other Act, scheme, or order on the council expressly as a local education authority or as a council having powers under this Act, except the power of raising a rate or borrowing money, shall stand referred to the education committee, and the council, before exercising any such powers, shall, unless in their opinion the matter is urgent, receive and consider the report of the education committee with respect to the matter in question ;

(b) the council may also delegate to the education committee, with or without any restrictions or conditions as they think fit, any such powers as aforesaid, except the power of raising a rate or borrowing money.

(3) The education committee of a council shall be constituted in accordance with a scheme made by the council, and approved by the Board of Education, and the provisions contained in the First Schedule to this Act shall apply with respect to the making and approval of any such scheme, and the meetings and proceedings of the education committee, and the qualification of members thereof.

(4) Any such scheme shall, when approved, have effect as if enacted in this Act, and any such scheme may be revoked or altered by a scheme made in like manner, and having the same effect as an original scheme.

(5) An education committee may, subject to any directions of the council, appoint such and so many

sub-committees consisting either wholly or partly of members of the committee, as the committee thinks fit.

5.--(1) The council of a non-county borough or urban district having any powers or duties under this Act may, at any time, by agreement with the council of the county, and with the approval of the Board of Education, relinquish in favour of the council of the county any of their powers and duties under this Act, and in that case the powers and duties of the authority so relinquished shall cease, and the area of the authority, if the powers and duties relinquished include powers as to elementary education, shall, as respects those powers, be part of the area of the county council.

Power of council of non-county borough or urban district to relinquish powers and duties under Act.

(2) The provisions set out in the Second Schedule to this Act shall have effect for the purpose of carrying out any relinquishment of powers or duties in pursuance of this section.

6.--(1) For the purpose of performing any duty or exercising any power under this Act, a council having powers under this Act may enter into such arrangements as they think proper for co-operation or combination with any other council or councils having such powers, and any such arrangement may provide for the appointment of a joint committee or a joint body of managers, for the delegation to that committee or body of managers of any powers or duties of the councils (other than the power of raising a rate or borrowing money), for the proportion of contributions to be paid by each council, and for any other matters which appear necessary for carrying out the arrangement.

Provisions as to co-operation and combination.

(2) The Board of Education may, on the application of two or more councils having powers under this Act, by scheme provide for the establishment and (if thought fit) the incorporation of a federation for such purposes of any such arrangements as aforesaid as may be specified in the scheme as being purposes relating to matters of common interest concerning education which it is necessary or convenient to consider in relation to areas larger than those of individual education authorities, and the powers conferred on councils by this section shall include power to arrange for the performance of any educational or administrative functions by such a federation as if it were a joint committee or a joint body of managers:

Provided that no council shall without their consent be included in a scheme establishing a federation, and no council shall be obliged to continue in a federation except in accordance with the provisions of a scheme to which they have consented.

(3) A scheme made by the Board of Education constituting a federation, and an arrangement establishing a joint committee or a joint body of managers, shall provide for the appointment of at least two-thirds of the members by councils having powers under this Act, and may provide either directly or by co-optation for the inclusion of teachers or other persons of experience in education and of representatives of universities or other bodies.

(4) A scheme constituting a federation may on the application of one or more of the councils concerned be modified or repealed by a further scheme, and, where a scheme provides for the discontinuance of a federation, provision may be made for dealing with any property or liabilities of the federation.

Arrange-
ments be-
tween
councils.

7. An authority having powers under this Act may make arrangements with the council of any county, borough (including a metropolitan borough), district, or parish, whether a local education authority or not, for the exercise by the council, on such terms and subject to such conditions as may be agreed on, of any powers of the authority in respect of the management of any school or college within the area of the council.

Co-operation
between
authorities for
elementary
and higher
education with
respect to
matters of
common
interest.

8. It shall be the duty of the local education authority for elementary education so to exercise their powers as to make, or otherwise to secure, adequate and suitable arrangements for co-operating with local education authorities for higher education in matters of common interest, and particularly in respect of the preparation of children for further education in schools other than elementary, and their transference at suitable ages to such schools, and of the supply and training of teachers.

Voting in
county
council.

9. The county councillors elected for an electoral division consisting wholly of a borough or urban district whose council are a local education authority for the purpose of elementary education, or of some part of such a borough or district, shall not vote in respect of any question arising before the county council which relates only to elementary education.

10. The minutes of the proceedings of a local education authority, and, where a local education authority delegate to their education committee any powers, and the acts and proceedings of the education committee as respects the exercise of those powers are not required to be submitted to the council for their approval, the minutes of the proceedings of the education committee relating to the exercise of those powers, shall be open to the inspection of any ratepayer at any reasonable time during the ordinary hours of business on payment of a fee of one shilling, and any ratepayer may make a copy thereof or take an extract therefrom.

Inspection
of minutes.

PART II.

SCHEMES AS TO POWERS AND DUTIES.

11. With a view to the establishment of a national system of public education available for all persons capable of profiting thereby, it shall be the duty of the council of every county and county borough, so far as their powers extend, to contribute thereto by providing for the progressive development and comprehensive organisation of education in respect of their area, and with that object any such council from time to time may, and shall when required by the Board of Education, submit to the Board schemes showing the mode in which their duties and powers under this Act and subsection (6) of section two of the Blind Persons Act, 1920, are to be performed and exercised, whether separately or in co-operation with other authorities.

Schemes for
progressive
and compre-
hensive or-
ganisation of
education.

10 & 11
Geo. 5. c. 49.

12. A local education authority for elementary education from time to time may, and shall, when required by the Board of Education, submit to the Board schemes for the exercise of their powers as such authority.

Schemes as
to elemen-
tary edu-
cation.

13. For the purpose of carrying out their powers and duties under this Act with respect to continuation schools, a local education authority for higher education from time to time may, and shall, when required by the Board of Education, submit to the Board schemes for the progressive organisation of a system of continuation schools, and for securing general and regular attendance thereat, and, in preparing schemes under this section, the

Schemes for
continuation
schools.

local education authority shall have regard to the desirability of including therein arrangements for co-operation with universities in the provision of lectures and classes for scholars for whom instruction by such means is suitable.

Preparation
and submis-
sion of
schemes.

14.—(1) The council of a county, before submitting a scheme under this Part of this Act, shall consult the other authorities within their county (if any) who are authorities for elementary education, with reference to the mode in which and the extent to which any such authority will co-operate with the council in carrying out their scheme, and when submitting their scheme shall make a report to the Board of Education as to the co-operation which is to be anticipated from any such authority, and any such authority may, if they so desire, submit to the Board, as well as to the council of the county, for consideration in connection with the scheme of the county, any proposals or representations relating to the provision or organisation of education in the area of that authority.

(2) Before submitting schemes under this Part of this Act a local education authority shall consider any representations made to them by parents or other persons or bodies of persons interested, and shall adopt such measures to ascertain their views as they consider desirable, and the authority shall take such steps to give publicity to their proposals as they consider suitable, or as the Board of Education may require.

(3) A local education authority in preparing schemes under this Part of this Act shall have regard to any existing supply of efficient and suitable schools or colleges not provided by local education authorities, and to any proposals to provide such schools or colleges.

(4) In schemes under this Part of this Act adequate provision shall be made in order to secure that children and young persons shall not be debarred from receiving the benefits of any form of education by which they are capable of profiting through inability to pay fees.

Approval of
schemes by
Board of
Education.

15.—(1) The Board of Education may approve any scheme (which term shall include an interim, provisional, or amending scheme) submitted to them under this Part of this Act by a local education authority, and thereupon

it shall be the duty of the local education authority to give effect to the scheme.

(2) If the Board of Education are of opinion that a scheme does not make adequate provision in respect of all or any of the purposes to which the scheme relates, and the Board are unable to agree with the authority as to what amendments should be made in the scheme, they shall offer to hold a conference with the representatives of the authority and, if requested by the authority, shall hold a public inquiry in the matter.

(3) If thereafter the Board of Education disapprove a scheme, they shall notify the authority, and, if within one month after such notification an agreement is not reached, they shall lay before Parliament the report of the public inquiry (if any) together with a report stating their reasons for such disapproval and any action which they intend to take in consequence thereof by way of withholding or reducing any grants payable to the authority.

16. If and so far as any such scheme as aforesaid relates to the medical inspection or treatment of children or young persons, the foregoing provisions of this Act shall apply as if for references to the Board of Education there were substituted references to the Minister of Health:

Provisions as to schemes relating to medical inspection and treatment.

Provided that for the purpose of facilitating the effective exercise and performance of the powers and duties of the Minister of Health in relation thereto, the Minister may make arrangements with the Board of Education respecting the submission and approval of such schemes, and the powers and duties of the Minister may under any such arrangements be exercised and performed by the Board on behalf of the Minister and with his authority under such conditions as he may think fit.

PART III.

ELEMENTARY SCHOOLS.

Maintenance and Provision of Schools.

17.—(1) The local education authority for elementary education shall, in accordance with and subject to the provisions of this Act, maintain and keep efficient all public elementary schools within their area which are

Duty to provide and maintain public elementary

school accommodation.

necessary, and have the control of all expenditure required for that purpose other than expenditure for which under this Part of this Act provision is to be made by the managers, and shall provide such additional school accommodation as is in the opinion of the Board of Education necessary in order to provide for their area a sufficient amount of public school accommodation, that is to say, accommodation in public elementary schools available for all the children resident in the area of the local education authority, for whose elementary education sufficient and suitable provision is not otherwise made.

(2) A local education authority may, with the consent of the Board of Education, provide a public elementary school, in cases where it appears convenient to do so, on a site outside their area for the use of children within their area, and for the purposes of this Act a school so provided shall be deemed to be situated within the area of the authority, but the Board before giving their consent shall consult the authority of the area in which the proposed site is situated.

(3) A local education authority, for the purpose of providing sufficient public school accommodation for their area, may provide, by building or otherwise, schoolhouses properly fitted up, and improve, enlarge and fit up any schoolhouse provided by them, and supply school apparatus and everything necessary for the efficiency of the schools provided by them, or may exercise any of those powers.

(4) A local education authority may discontinue any school provided by them, or change the site of any such school, if they satisfy the Board of Education that the school to be discontinued is unnecessary, or that the change of site is expedient.

Provision of new schools.

18.—(1) Where the local education authority or any other persons propose to provide a new public elementary school, they shall give public notice of their intention to do so, and the managers of any existing school, or the local education authority (where they are not themselves the persons proposing to provide the school), or any ten ratepayers in the area for which it is proposed to provide the school, may, within three months after the notice is given, appeal to the Board of Education on the ground that the proposed school is not required, or that a school provided by the local education authority, or not so provided, as the case may be, is better suited to meet the

wants of the district than the school proposed to be provided, and any school provided in contravention of the decision of the Board of Education on such appeal shall be treated as unnecessary.

(2) If, in the opinion of the Board of Education, any enlargement of a public elementary school is such as to amount to the provision of a new school, that enlargement shall be so treated for the purposes of this section.

(3) Any transfer of a public elementary school to or from a local education authority shall, for the purposes of this section, be treated as the provision of a new public elementary school.

(4) The provision of premises for classes in practical or advanced instruction for children attending from more than one public elementary school shall not be deemed to be the provision of a new public elementary school.

(5) The site of a new public elementary school to be provided by the local education authority for the administrative county of London within the area of a metropolitan borough shall not be determined upon until after consultation with the council of the metropolitan borough in which the proposed site is situated, and, in the case of compulsory purchase, if the council of the metropolitan borough does not concur in the proposed compulsory acquisition, the Board of Education shall not make the order authorising the purchase unless they are satisfied that the concurrence of the council of the borough should be dispensed with: Provided that, except in the case of compulsory acquisition, the site required for the enlargement of a public elementary school shall not be deemed to be a site required for a new public elementary school within the meaning of this provision.

Schools provided by the local education authority for blind, deaf, epileptic, or defective children, and any other schools which, in the opinion of the Board of Education, are not of a local character, shall not be treated for the purposes of this subsection as public elementary schools.

19.—(1) The Board of Education shall, without unnecessary delay, determine, in case of dispute, whether a school is necessary or not, and, in so determining, and also in deciding on any appeal as to the provision of a new school, shall have regard to the interest of secular instruction, to the wishes of parents as to the education of Necessity of schools.

their children, and to the economy of the rates; but a school for the time being recognised as a public elementary school shall not be considered unnecessary in which the number of scholars in average attendance, as computed by the Board of Education, is not less than thirty.

(2) Where the managers of an elementary school which is not at the time recognised as a public elementary school apply to the Board of Education for a parliamentary grant, the Board may, although no appeal is made to the Board under this Act on the ground that the school is not required, refuse the application for the grant, if they think that the school is unnecessary, but shall make a special report to Parliament in every year of any cases in which the grant has been so refused during the preceding year, showing in each case the reasons for the refusal.

Practical
and advanced
instruction.

20. It shall be the duty of a local education authority so to exercise their powers under this Part as to make, or otherwise to secure, adequate and suitable provision by means of central schools, central or special classes, or otherwise—

- (i) for including in the curriculum of public elementary schools, at appropriate stages, practical instruction suitable to the ages, abilities, and requirements of the children; and
- (ii) for organising in public elementary schools courses of advanced instruction for the older or more intelligent children in attendance at such schools, including children who stay at such schools beyond the age of fourteen.

Nursery
schools.

21. The powers of a local education authority for elementary education shall include power to make arrangements for—

- (a) supplying or aiding the supply of nursery schools (which expression shall include nursery classes) for children over two and under five years of age, or such later age as may be approved by the Board of Education, whose attendance at such a school is necessary or desirable for their healthy, physical, and mental development; and
- (b) attending to the health, nourishment, and physical welfare of children attending nursery schools.

22. The powers of a local education authority for elementary education shall include power to provide, for children attending a public elementary school, vacation schools, vacation classes, play-centres, or other means of recreation during their holidays or at such other times as the local education authority may prescribe, in the school-house or in some other suitable place in the vicinity, so far as the local education authority, in the case of a school-house or place not belonging to them, can obtain for the purpose the use of the schoolhouse or place :

Vacation,
&c., schools

Provided that in any exercise of powers under this section, the local education authority may encourage and assist the establishment or continuance of voluntary agencies, and associate with themselves representatives of voluntary associations for the purpose.

23. Where a local education authority for elementary education are satisfied in the case of any children that, owing to the remoteness of their homes or the conditions under which the children are living, or other exceptional circumstances affecting the children, those children are not in a position to receive the full benefit of education by means of the ordinary provision made for the purpose by the authority, the authority may, with the approval of the Board of Education, make such arrangements, either of a permanent or temporary character, and including the provision of board and lodging, as they think best suited for the purpose of enabling those children to receive the benefit of efficient elementary education, and may for that purpose enter into such agreement with the parent of any such child as they think proper :

Powers for
the educa-
tion of
children in
exceptional
circum-
stances.

Provided that, where a child is boarded out in pursuance of this section, the local education authority shall, if possible, and, if the parent so requests, arrange for the boarding out being with a person belonging to the religious persuasion of the child's parents.

24. The powers of a local education authority for elementary education shall include a power to aid by scholarships (which term includes allowances for maintenance) or bursaries the instruction in public elementary schools of scholars from the age of twelve up to the limit of age fixed by this Act for the provision of instruction in a public elementary school.

Provisions
with respect
to scholar-
ships, bur-
saries, &c.

25. The local education authority may maintain as a public elementary school under the provisions of this

Provision as
to Marine

schools and
schools at-
tached to
institutions.

Act, but shall not be required so to maintain, any Marine school, or any school which is part of, or is held in the premises of, any institution in which children are boarded, but, notwithstanding anything in this Act, their refusal to maintain such a school shall not render the school incapable of receiving a parliamentary grant, nor shall the school, if not so maintained, be subject to the provisions of this Act as to the appointment of managers, or as to control by the local education authority.

Limitation
on powers of
providing
elementary
instruction.

26.—(1) The Board of Education may, on the application of the local education authority, authorise the instruction of children in public elementary schools till the end of the school term in which they reach the age of sixteen or (in special circumstances) such later age as appears to the Board desirable:

Provided that, in considering such application, the Board shall have regard to the adequacy and suitability of the arrangements made by the authority under sections eight and twenty of this Act and to the effective development and organisation of all forms of education in the area, and to any representations made by the managers of schools.

(2) Subject as aforesaid, the power to provide instruction under the provisions of this Part of this Act shall, except where this Act expressly provides to the contrary, be limited to the provision in a public elementary school of instruction given under the regulations of the Board of Education to scholars who, at the close of the school year, will not be more than sixteen years of age: Provided that—

(a) the local education authority may, with the consent of the Board of Education, extend those limits in the case of any such school if no suitable higher education is available within a reasonable distance of the school;

(b) the Board of Education may, on the application of the local education authority, by order substitute, as respects any public elementary school within the area of the authority, the close of the educational year as fixed by the Board for that school for the close of the school year, and as respects any such school this subsection shall have effect as if the close of the educational year fixed by the order was substituted for the close of the school year.

Conduct of School.

27.—(1) Every elementary school which is conducted in accordance with the following regulations shall be a public elementary school. Public elementary school.
and every public elementary school shall be conducted in accordance with the following regulations (a copy of which regulations shall be conspicuously put up in every such school); namely:—

- (a) It shall not be required, as a condition of any child being admitted into or continuing in the school, that he shall attend or abstain from attending any Sunday school, or any place of religious worship, or that he shall attend any religious observance or any instruction in religious subjects in the school or elsewhere, from which observance or instruction he may be withdrawn by his parent, or that he shall, if withdrawn by his parent, attend the school on any day exclusively set apart for religious observance by the religious body to which his parent belongs:
- (b) The time or times during which any religious observance is practised or instruction in religious subjects is given at any meeting of the school shall be either at the beginning or at the end or at the beginning and the end of such meeting, and shall be inserted in a time-table to be approved by the Board of Education, and to be kept permanently and conspicuously affixed in every schoolroom; and any scholar may be withdrawn by his parent from such observance or instruction without forfeiting any of the other benefits of the school:
- (c) The school shall be open at all times to the inspection of any of His Majesty's inspectors, so, however, that it shall be no part of the duties of such inspector to inquire into any instruction in religious subjects given at such school, or to examine any scholar therein in religious knowledge or in any religious subject or book:
- (d) The school shall be conducted in accordance with the conditions required to be fulfilled by an elementary school in order to obtain an annual parliamentary grant.

(2) It shall be the duty of the local education authority to report to the Board of Education any infraction of the provisions of this section in any public elementary school within their area which may come to their knowledge and also to forward to the Board any complaint which they may receive of any infraction of those provisions.

Conditions
to be ob-
served in
conduct of
provided
schools.

28. Every elementary school provided by a local education authority shall be conducted under the control and management of that authority in accordance with the following regulations :—

- (1) The school shall be a public elementary school within the meaning of this Act;
- (2) No religious catechism or religious formulary which is distinctive of any particular denomination shall be taught in the school.

Conditions
to be ob-
served in
conduct of
non-provided
schools.

29.—(1) The local education authority shall be responsible for, and have the control of, all secular instruction in public elementary schools not provided by them.

(2) A local education authority shall maintain and keep efficient under this Act a public elementary school not provided by them only so long as the school is necessary and the following conditions and provisions are complied with :—

- (a) The managers of the school shall carry out any directions of the local education authority as to the secular instruction to be given in the school, including any directions with respect to the number and educational qualifications of the teachers to be employed for such instruction, and with respect to arrangements for the admission to the school of teachers of secular subjects not attached to the staff of any particular school, and teachers appointed for the purpose of giving practical instruction, pupil teachers and student teachers, and for the dismissal of any teacher on educational grounds, and, if the managers fail to carry out any such direction, the local education authority shall, in addition to their other powers, have the power themselves to carry out the direction in question as if they were the managers; but no direction given under this provision

shall be such as to interfere with reasonable facilities for religious instruction during school hours :

- (b) The local education authority shall have power to inspect the school :
- (c) The consent of the local education authority shall be required to the appointment of teachers, but that consent shall not be withheld except on educational grounds ; and the consent of the authority shall also be required to the dismissal of a teacher unless the dismissal be on grounds connected with the giving of religious instruction in the school :
- (d) The managers of the school shall provide the schoolhouse free of any charge, except for the teacher's dwelling-house (if any), to the local education authority for use as a public elementary school, and shall, out of funds provided by them, keep the schoolhouse in good repair, and make such alterations and improvements in the buildings as may be reasonably required by the local education authority : Provided that such damage as the local education authority consider to be due to fair wear and tear in the use of any room in the schoolhouse for the purpose of a public elementary school shall be made good by the local education authority :
- (e) The managers of the school shall, if the local education authority have no suitable accommodation in schools provided by them, allow that authority to use any room in the schoolhouse out of school hours free of charge for any educational purpose, but this obligation shall not extend to more than three days in the week.

(3) The managers of a public elementary school maintained but not provided by a local education authority, in respect of the use by them of the school furniture out of school hours, and the local education authority in respect of the use by them of any room in the schoolhouse out of school hours, shall be liable to make good any damage caused to the furniture or the room, as the case may be, by reason of that use (other than damage arising from fair wear and tear), and the managers shall take care that, after the use of a room in the schoolhouse by

them, the room is left in a proper condition for school purposes.

(4) A local education authority shall be entitled to use for the purposes of the school any school furniture and apparatus belonging to the trustees or managers of any public elementary school not provided by them, and in use for the purposes of the school on the day on which the Education Act, 1902, came into operation as respects the school.

(5) In public elementary schools maintained but not provided by the local education authority—

- (a) Assistant teachers and pupil teachers may be appointed if it is thought fit, without reference to religious creed and denomination;
- (b) The appointment of teachers of secular subjects not attached to the staff of any particular public elementary school and teachers appointed for the purpose of giving practical instruction, pupil teachers and student teachers shall be made by the local education authority;
- (c) The religious instruction given shall, as regards its character, be in accordance with the provisions (if any) of the trust deed relating thereto, and shall be under the control of the managers: Provided that nothing in this paragraph shall affect any provision in a trust deed for reference to the bishop or superior ecclesiastical or other denominational authority so far as such provision gives to the bishop or authority the power of deciding whether the character of the religious instruction is or is not in accordance with the provisions of the trust deed.

(6) The managers of a school maintained but not provided by the local education authority shall have all powers of management required for the purpose of carrying out this Act and shall, subject to the powers of the local education authority under this section, have the exclusive power of appointing and dismissing teachers.

(7) One of the conditions required to be fulfilled by an elementary school not provided by a local education authority in order to obtain a parliamentary grant shall be that it is maintained under and complies with the provisions of this section.

(8) The power of a local education authority under this section to give directions as to secular instruction shall include the power to direct that any child in attendance at a public elementary school shall attend during such hours as may be directed by the authority at any class, whether conducted on the school premises or not, for the purpose of practical or special instruction or demonstration, and attendance at such a class shall, where the local education authority so direct, be deemed for the purpose of any enactment or byelaw relating to school attendance to be attendance at a public elementary school :

Provided that, if by reason of any such direction a child is prevented on any day from receiving religious instruction in the school at the ordinary time mentioned in the time-table, reasonable facilities shall be afforded, subject to the provisions of section twenty-seven of this Act, for enabling such child to receive religious instruction in the school at some other time.

(9) If any question arises under this section between the local education authority and the managers of a school not provided by the authority, that question shall be determined by the Board of Education.

School Managers.

30.—(1) All public elementary schools provided by the local education authority shall, where the local education authority are the council of a county, have a body of managers, consisting of a number of managers not exceeding four appointed by that council, together with a number not exceeding two appointed by the minor local authority. Managers.

Where the local education authority are the council of a borough or urban district they may, if they think fit, appoint for any school provided by them a body of managers consisting of such number of managers as they may determine.

This subsection shall not apply to the administrative county of London.

(2) All public elementary schools not provided by the local education authority shall have a body of managers consisting of a number of foundation managers not exceeding four appointed as provided by this Act,

together with a number of managers not exceeding two appointed—

- (a) where the local education authority are the council of a county, one by that council and one by the minor local authority; and
- (b) where the local education authority are the authority of a borough or urban district, both by that authority.

(3) Where any school situated in a county appears to the county council to serve the area of more than one minor local authority, the county council shall make such provision as they think proper for the joint appointment of managers by the authorities concerned.

(4) The provisions contained in the Third Schedule to this Act shall apply with respect to meetings and proceedings of managers.

(5) Notwithstanding anything in this section—

- (a) schools may be grouped under one body of managers in manner provided by this Act; and
- (b) where the local education authority consider that the circumstances of any school require a larger body of managers than that provided under this section, that authority may increase the total number of managers, so, however, that the number of each class of managers is proportionately increased; and
- (c) any public elementary school, which in the opinion of the Board of Education is organised for the sole purpose of giving advanced instruction to older children, may be managed in such manner as may be approved by the local education authority, and in the case of a school not provided by that authority also by the managers of the school; and
- (d) any class conducted in premises provided for classes in practical or advanced instruction for children attending from more than one public elementary school may be managed in such manner as may be approved by the local education authority.

31.—(1) The foundation managers of a school shall be managers appointed under the provisions of the trust deed of the school, or under an order made in pursuance of this Act or section eleven of the Education Act, 1902, or under the trust deed of the school as modified by any such order.

Foundation
managers.

(2) Where the receipt by a school, or the trustees or managers of a school, of any endowment or other benefit was, at the time of the passing of the Education Act, 1902, dependent on any qualification of the managers, the qualification of the foundation managers only shall, in case of question, be regarded.

32.—(1) If it is shown to the satisfaction of the Board of Education that the provisions of the trust deed of a school not provided by the local education authority as to the appointment of managers are in any respect inconsistent with the provisions of this Act, or insufficient or inapplicable for the purpose, or that there is no such trust deed available, the Board of Education shall, on the application of the local education authority or any other person interested in the management of the school, make an order under this section for the purpose of meeting the case.

Orders of
Board of
Education as
to foundation
managers.

(2) The Board of Education may, on the application of the managers of the school, the local education authority, or any person appearing to them to be interested in the school, revoke, vary, or amend by an order made under this section any previous order so made.

(3) Notice of any such application, together with a copy of the draft final order proposed to be made thereon, shall be given by the Board of Education to the local education authority and the owners, trustees and managers of the school, and to any other persons who appear to the Board of Education to be interested, and the final order shall not be made until six weeks after notice has been so given.

(4) The Board of Education may, if they think that the circumstances of the case require it, make any interim order on any application under this section to have temporary effect until the final order is made.

(5) In making an order under this section with regard to any school, the Board of Education shall have regard to the ownership of the school building, and to

the principles on which the education given in the school has been conducted in the past. .

(6) Any order made under this section, where it modifies the trust deed of a school, shall have effect as part of the trust deed, and, where there is no trust deed, shall have effect as if it were contained in a trust deed.

(7) Before making any final order revoking, varying, or amending a previous order made under this section, the draft thereof shall, as soon as may be, be laid before each House of Parliament, and, if within thirty days, being days on which Parliament has sat, after the draft has been so laid before Parliament, either House resolves that the draft, or any part thereof, should not be proceeded with, no further proceedings shall be taken thereon, without prejudice to the making of any new draft order.

Grouping of
schools
under one
manage-
ment.

33.—(1) The local education authority may group under one body of managers any public elementary schools provided by them, and may also, with the consent of the managers of the schools, group under one body of managers any such schools not so provided.

(2) The body of managers of grouped schools shall consist of such number and be appointed in such manner and proportion as, in the case of schools provided by the local education authority, may be determined by that authority, and, in the case of schools not so provided, may be agreed upon between the bodies of managers of the schools concerned and the local education authority, or in default of agreement may be determined by the Board of Education.

(3) Where the local education authority are the council of a county, they shall make provision for the due representation of minor local authorities on the bodies of managers of schools grouped under their direction.

(4) Any arrangement for grouping schools not provided by the local education authority shall, unless previously determined by consent of the parties concerned, remain in force for a period of three years.

(5) This section, so far as it relates to schools provided by the local education authority, shall not apply to the administrative county of London.

34. Where there are two or more public elementary schools not provided by the local education authority of the same denominational character in the same locality, the local education authority, if they consider that it is expedient for the purpose of educational efficiency and economy, may, with the approval of the Board of Education, give directions for the distribution of the children in those schools according to age, sex, or attainments, and otherwise with respect to the organisation of the schools; and for the grouping of the schools under one body of managers constituted in the manner provided by subsection (2) of the last preceding section :

Organisation and grouping of non-provided schools of the same denominational character.

Provided that, if the constitution of the body of managers falls to be determined by the Board of Education under that section, the Board shall observe the principles and proportions prescribed by sections thirty, thirty-one, and thirty-two of this Act; and that, if the managers of a school affected by any directions given under this section request a public inquiry, the Board shall hold a public inquiry before approving those directions.

35.—(1) The managers of a public elementary school provided by the local education authority shall deal with such matters relating to the management of the school, and subject to such conditions and restrictions, as the local education authority determine.

Powers of managers.

(2) The managers of an elementary school shall have power to fulfil the conditions required to be fulfilled in order to obtain a parliamentary grant, and to fulfil any other conditions, perform any duties, and exercise any powers under this Act, notwithstanding any provision contained in any trust deed of the school.

(3) The body of managers appointed under this Act for a public elementary school not provided by the local education authority shall be the managers of the school both for the purposes of this Act and, so far as respects the management of the school as a public elementary school, for the purposes of the trust deed.

36.—(1) Every public elementary school provided by the local education authority for the administrative county of London within the area of any metropolitan borough shall have a body of managers. The number of those managers and the manner in which schools, in cases where it is desirable, should be grouped under one body of managers shall

Management and grouping of provided schools in London.

be determined by the council of each borough, after consultation with the local education authority, and subject to the approval of the Board of Education.

(2) Two-thirds of every such body shall be appointed by the borough council and one-third by the local education authority; but due regard shall be had in selecting managers to the inclusion of women in the proportion of not less than one-third of the whole body of managers, and the borough council and the local education authority shall carry out any directions given by the Board of Education for the purpose of giving effect to this provision.

(3) A manager of a public elementary school provided by the local education authority for the administrative county of London shall not be appointed for a longer period than three years, but may be re-appointed.

(4) Schools provided by the local education authority for the administrative county of London for blind, deaf, epileptic, or defective children, and any other schools which, in the opinion of the Board of Education, are not of a local character, shall not be treated for the purposes of this section as public elementary schools.

(5) Notwithstanding anything in this section, any public elementary school which, in the opinion of the Board of Education, is organised for the sole purpose of giving advanced instruction to older children, and any class conducted in premises provided for classes in practical or advanced instruction for children attending from more than one public elementary school, may be managed in such manner as may be approved by the local education authority.

(6) Nothing in this section shall apply to schools not provided by the local education authority.

Prohibition of School Fees.

37.—(1) No fees shall be charged or other charges of any kind made in any public elementary school.

(2) During a period of five years from the first day of April, nineteen hundred and nineteen, the Board of Education shall, in each year, out of moneys provided by Parliament, pay to the managers of a school maintained but not provided by a local education authority in which fees were charged immediately before that day, the average yearly sum paid to the managers under section fourteen

Prohibition
of fees in
public ele-
mentary
schools.

of the Education Act, 1902, during the five years immediately preceding that day.

(3) Nothing in this section shall affect the provisions of this Act relating to payments by parents with respect to the provision of meals or the medical treatment of children or by parents of blind, deaf, defective and epileptic children.

Transfers and Closing of Schools.

38.—(1) The managers of an elementary school in the area of any local education authority for elementary education may, in manner provided by Part I. of the Fourth Schedule to this Act, make an arrangement with the local education authority for transferring the school to that authority, and the local education authority may assent to the arrangement.

Power to transfer school to local education authority.

(2) A school transferred under this section shall, to such extent and during such time as the local education authority have, under the arrangement, any control over the school; be deemed to be a school provided by the local education authority.

39.—(1) Where any elementary school or any interest therein has been transferred in pursuance of such an arrangement as aforesaid, the local education authority may in the manner provided by Part II. of the Fourth Schedule to this Act re-transfer that school or interest therein to a body of managers qualified to hold the same under the trusts of the school as they existed before the transfer.

Re-transfer of schools.

(2) Every school so re-transferred shall cease to be a school provided by a local education authority, and shall be held upon the same trusts on which it was held before it was transferred to the authority.

40.—(1) The managers of a public elementary school not provided by the local education authority, if they wish to close the school, shall give eighteen months' notice to the local education authority of their intention to close the school, and a notice under this provision shall not be withdrawn except with the consent of the local education authority.

Provision as to closing of school.

(2) If the managers of a school who have given such a notice are unable or unwilling to carry on the school up to the expiration of the period specified in the notice, the schoolhouse shall be put at the disposal

of the local education authority, if the authority so desire, for the whole or any part of the period, free of charge, for the purposes of a school provided by them, but subject to an obligation on the part of the authority to keep the schoolhouse in repair and to pay any outgoings in respect thereof, and to allow the use of the schoolhouse and the school furniture by the persons who were the managers of the school to the like extent and subject to the like conditions as if the school had continued to be carried on by those managers.

The use by the authority of the schoolhouse during such period for the purposes of a school provided by them shall not be deemed, for the purposes of section eighteen of this Act, to constitute the provision of a new school.

Endowments of Non-Provided Schools.

Endow-
ments.

41.—(1) Nothing in this Act shall affect any endowment or the discretion of any trustees in respect thereof: Provided that, where under the trusts or other provisions affecting any endowment the income thereof must be applied in whole or in part for those purposes of a public elementary school for which provision is to be made by the local education authority, the whole of the income or the part thereof, as the case may be, shall be paid to that authority, and, in case part only of such income must be so applied and there is no provision under the said trusts or provisions for determining the amount which represents that part, that amount shall be determined, in case of difference between the parties concerned, by the Board of Education.

(2) If a public inquiry is demanded by the local education authority, the decision of the Board of Education shall not be given until after such an inquiry, of which ten days' previous notice shall be given to the local education authority and to the minor local authority and to the trustees, shall have been first held by the Board at the cost of the local education authority.

(3) Any money arising from an endowment, and paid to a county council for those purposes of a public elementary school for which provision is to be made by the council, shall be credited by the council in aid of the rate levied for the purposes of elementary education in the parish or parishes which, in the opinion of the

council, are served by the school for the purposes of which the sum is paid, or, if the council so direct, shall be paid to the overseers of the parish or parishes in the proportions directed by the council, and applied by the overseers in aid of the poor rate levied in the parish.

The foregoing provisions of this subsection shall not apply to the administrative county of London, but the Board of Education may, on the application of the trustees of the endowment or of the local education authority, direct that any money, which would be payable to the county council under this section, shall be applied in manner provided by a scheme made by the Board, if the Board consider it expedient to make such a scheme; and in any such scheme due regard shall primarily be had to the interests of the locality for which the benefits of the endowment were intended.

PART IV.

SCHOOL ATTENDANCE.

Duty of Parent.

42. It shall be the duty of the parent of every child between the ages of five and fourteen, or, if a byelaw under this Act so provides, between the ages of six and fourteen, to cause that child to receive efficient elementary instruction in reading, writing, and arithmetic.

Declaration of duty of parent to educate child.

43.—(1) It shall be the duty of the local education authority for elementary education, after due warning to the parent, to complain to a court of summary jurisdiction with a view to obtaining a school attendance order under this Act in the following cases:—

Duty of local education authority to take proceedings for enforcing duty of parent.

- (a) If the parent of any such child habitually and without reasonable excuse neglects to provide efficient elementary instruction for his child; or
- (b) If any such child is found habitually wandering or not under proper control, or in the company of rogues, vagabonds, disorderly persons, or reputed criminals.

(2) Where the local education authority are informed by any person of any child in their area who is stated by that person to be liable to be ordered by a court under this Act to attend school, or to be sent under this Act to an industrial school, it shall be the duty of the local

education authority to take proceedings accordingly, unless the local education authority think that it is inexpedient to take such proceedings :

Provided that nothing in this subsection shall relieve the local education authority from the responsibility of performing their duty under the other provisions of this Act.

School
attendance
order.

44. Where complaint is made by a local education authority in pursuance of the duty imposed on them under this Act to a court of summary jurisdiction with a view to obtaining a school attendance order under this Act, the court may, if they are satisfied of the truth of the complaint, make an order (in this Act referred to as a school attendance order) ordering that the child, to whom the complaint relates, do attend some certified efficient school willing to receive him and named in the order, being either such as the parent may select, or, if he do not select any, then such public elementary school as the court think expedient, and the child shall attend that school every time that the school is open, or in such other regular manner as is specified in the order.

Proceedings
on disobe-
dience to
order of
court for
attendance
at school.

45. Where a school attendance order is not complied with without any reasonable excuse, a court of summary jurisdiction, on complaint made by the local education authority, may, if they think fit, order as follows :—

- (a) In the first case of non-compliance, if the parent of the child does not appear, or appears and fails to satisfy the court that he has used all reasonable efforts to enforce compliance with the order, the court may impose a fine not exceeding with the costs twenty shillings; but if the parent satisfies the court that he has used all reasonable efforts as aforesaid, the court may, without inflicting a fine, order the child to be sent to a certified day industrial school, or, if it appears to the court that there is no such school suitable for the child, then to a certified industrial school; and
- (b) In the second or any subsequent case of non-compliance with the order, the court may order the child to be sent to a certified day industrial school, or if it appears to the court that there is no such school suitable for the child, then

to a certified industrial school, and may further in their discretion inflict any such fine as aforesaid, or they may for each such non-compliance inflict any such fine as aforesaid without ordering the child to be sent to an industrial school :

Provided that—

- (i) a complaint under this section with respect to a continuing non-compliance with a school attendance order shall not be repeated by the local education authority at any less interval than two weeks ; and
- (ii) the court in lieu of ordering the child to be sent to an industrial school may make an order for the committal of the child to the care of a relative or other fit person in accordance with the provisions of section fifty-eight of the Children Act, 1908.

8 Edw. 7.
c. 67.

Byelaws.

46.—(1) It shall be the duty of the local education authority to make and enforce byelaws for their area respecting the attendance of children at school under this Act.

Duty of local
education
authority
to make
byelaws.

(2) Byelaws under this Part of this Act shall be made requiring the parents of children between the age of five years and such age not being less than fourteen nor more than fifteen as may be fixed by the byelaws, to cause those children (unless there is some reasonable excuse) to attend school at such times as may be determined by the byelaws.

(3) Where a byelaw requires the parents of children between the ages of fourteen and fifteen to cause those children to attend school, the byelaw may apply either generally to all such children or to children other than those employed in any specified occupations, and it shall be lawful for the local education authority to grant exemption from the obligation to attend school to individual children between the ages of fourteen and fifteen for such time and upon such conditions as the authority think fit in any case where, after due inquiry, the circumstances seem to justify such an exemption.

(4) Byelaws under this Part of this Act—

- (a) shall not prevent the withdrawal of any child from any religious observance or instruction in religious subjects ; and
- (b) shall not require any child to attend school on any day exclusively set apart for religious observance by the religious body to which his parent belongs ; and
- (c) may provide that parents shall not be required to cause their children to attend school or to receive efficient elementary instruction in reading, writing, and arithmetic before the age of six.

(5) Penalties, to be recovered summarily, may be imposed by the byelaws for any breach thereof, not exceeding a fine for each offence of such sum as with costs will amount to twenty shillings.

(6) Where the local education authority are the council of a county, they may, if they think fit, make different byelaws for different parts of their area.

Powers of
Board of
Education
in case of
default of
authority.

47. If at any time it appears to the Board of Education that in the area of any local education authority, or in any part of that area, there are no byelaws under this Act in force, the Board may either exercise the powers given to them by this Act for enforcing the duties of a local education authority, or may themselves make byelaws respecting the attendance of children at school in that area or part of an area, and the byelaws so made shall have effect and be enforced as if they had been made by the local education authority for that area or part of an area and sanctioned by the Board in pursuance of this Act.

Procedure as
to approval
of byelaws.

48.—(1) Byelaws made under this Part of this Act shall not come into operation until they have been sanctioned by the Board of Education, and it shall be lawful for the Board to approve the byelaws, and thereupon the byelaws shall have effect as if they were enacted in this Act.

(2) A local education authority, not less than one month before submitting any such byelaw for the approval of the Board of Education, shall deposit a printed

copy of the proposed byelaws at the office of the authority for inspection by any ratepayer, and supply a printed copy thereof gratis to any ratepayer, and shall publish a notice of the deposit.

(3) The Board of Education, before approving any byelaws, shall be satisfied that the deposit has been made and notice published, and shall cause such inquiry to be made in the area of the local education authority as the Board think requisite.

(4) In considering whether approval shall be given to any byelaw providing that parents shall not be required to cause their children to attend school or to receive efficient elementary instruction in reading, writing, and arithmetic before the age of six, the Board of Education shall have regard to the adequacy of the provision of nursery schools for the area to which the byelaw relates, and shall, if requested by any ten parents of children attending public elementary schools for that area, hold a public inquiry for the purpose of determining whether the byelaw should be approved.

(5) All byelaws sanctioned by the Board of Education under this section shall be set out in an appendix to the annual report of the Board of Education.

49. Any of the following reasons shall be a reasonable excuse for the purposes of this Act and the byelaws made thereunder, namely:—

Definition of
reasonable
excuse.

- (a) That the child has been prevented from attending school by sickness or any unavoidable cause;
- (b) That there is no public elementary school open which the child can attend within such distance, not exceeding three miles, measured according to the nearest road from the residence of the child, as the byelaws may prescribe;
- (c) In the case of non-compliance with a byelaw requiring a parent to cause his child to attend school, that the child is under efficient instruction in some other manner:

Provided that where the local education authority provides suitable means of conveyance for a child between a reasonable distance of its home and a public elementary school, it shall not be a reasonable excuse within the meaning of this section that there is no public elemen-

tary school open which the child can attend within such prescribed distance as aforesaid.

Application to Children in Canal Boats.

Application
to children
in canal
boats.
40 & 41 Vict.
c. 60.
47 & 48 Vict.
c. 75.

50.—(1) A child in a canal boat, registered in pursuance of the Canal Boats Acts, 1877 and 1884, and his parent, for the purposes of this Part of this Act, shall be deemed, subject as hereinafter mentioned, to be resident in the place to which the boat is registered as belonging, and shall be subject accordingly to any byelaws under this Part of this Act for the time being in force in that place :

Provided that if the parent satisfies the local education authority that the child is actually attending school, or is receiving efficient elementary instruction in the area of some other education authority, the first-mentioned local education authority shall grant him, without charge, a certificate to that effect, and thereupon he and his child shall be deemed for the purposes aforesaid to be resident in the area in which the child is so attending school or receiving efficient instruction and shall be subject to any byelaws in force in that area.

(2) Such certificate as aforesaid may, on application by the parent, be rescinded or varied by the local education authority for the area comprising the place to which the boat is registered as belonging, and may be rescinded without application by the local education authority if they are satisfied, after due notice to the parent that the child is not properly attending school or receiving efficient elementary instruction in the area mentioned in the certificate.

(3) The Board of Education shall have power to make regulations with respect to the form of certificates or passbooks as to attendance at school to be used by children in canal boats, but no such regulations shall come into force until they have lain before both Houses of Parliament for forty days during the session of Parliament, and the Board shall take steps to enable all persons interested in any regulations made as aforesaid to obtain copies thereof at such places in the neighbourhood of canals as the Board may prescribe on payment of such sum, not exceeding sixpence, as may be prescribed by the Board.

(4) The Board of Education shall every year report to Parliament as to the manner in which this Part of this Act is enforced with respect to children in canal boats, and shall for that purpose direct His Majesty's inspectors to communicate with local education authorities in their district.

PART V.

BLIND, DEAF, DEFECTIVE, AND EPILEPTIC CHILDREN.

Education of Blind and Deaf Children.

51.—(1) The duty of a parent under Part IV. of this Act to cause his child to receive efficient elementary instruction shall, in the case of a blind or deaf child, include the duty to cause the child to receive instruction suitable to such a child.

Duty of parent as to blind and deaf children.

(2) The fact of a child being blind or deaf (except in the case of a deaf child under seven years of age), or the fact that there is not within any particular distance from the residence of a blind or deaf child any public elementary school which the child can attend, shall not of itself be a reasonable excuse for not causing the child to attend school, or for neglecting to provide efficient elementary instruction for the child.

52.—(1) It shall be the duty of the local education authority for elementary education to enable blind and deaf children resident in their area, for whose elementary education efficient and suitable provision is not otherwise made, to obtain that education in some school for the time being certified by the Board of Education as suitable for providing that education, and for that purpose either to establish or acquire and to maintain a school so certified, or to contribute, on such terms and to such extent as may be approved by the Board, towards the establishment or enlargement, alteration, and maintenance of a school so certified, or towards any of those purposes, and, where necessary or expedient, to make arrangements, subject to regulations of the Board, for boarding out any blind or deaf child in a home conveniently near to the certified school where the child is receiving elementary education.

Duty of local education authority with respect to blind and deaf children.

(2) The duty of a local education authority under this section shall not extend to children who are—

(a) idiots or imbeciles; or

- (b) resident in a workhouse or in any institution to which they have been sent by a board of guardians from a workhouse; or
- (c) boarded out by guardians.

(3) Where a local education authority contribute under this section to the establishment, enlargement, or alteration of a certified school, the terms of contribution approved by the Board of Education—

- (a) shall, where the school is maintained by another authority, include security for repayment of the value of the contribution in the event of the school ceasing to be certified; and
- (b) may include provision for representation of the contributing local education authority on the governing body of the school to which they contribute, in cases where that representation appears to the Board to be practicable and expedient.

(4) For the purposes of this Part of this Act relating to blind and deaf children, a child resident in a school or boarded out in pursuance of this Act shall be deemed to be resident in the area from which the child is sent.

Education of Defective and Epileptic Children.

Obligation of parent as to defective and epileptic children.

53. The duty of a parent under Part IV of this Act to cause his child to receive efficient elementary instruction shall, in the case of a defective or epileptic child over seven years of age in any place where a special class or school certified by the Board of Education for defective or epileptic children, as the case requires, is within reach of the child's residence, include the duty to cause the child to attend such a class or school, and a parent shall not be excused from this duty by reason only that a guide or conveyance for the child is necessary.

Enforcement of duties of parents of defective and epileptic children.

54.—(1) If a local education authority for elementary education are satisfied, after consultation with the parent of a defective or epileptic child over seven years of age, that the parent is not making suitable provision for the child's education, they may require the parent of the child to send the child to a certified class or school suitable for the child, and, if he fails without reasonable excuse to do so, may by complaint apply to a court of

summary jurisdiction for an order requiring the child to be sent to a certified class or school suitable for the child and willing to receive him, being either such as the parent may select, or, if he does not select a suitable class or school, then such class or school as the court think expedient, and such an order shall be a sufficient authority for the conveyance of the child to the class or school named in the order:

Provided that—

- (i) no order shall be made requiring the child to be sent to a certified class or school which is not within reach of the child's residence or to a boarding school without the consent in writing of the parent, unless it is proved to the satisfaction of the court that such consent is unreasonably withheld, or that the parent cannot be found, but consent shall not be deemed to be unreasonably withheld if withheld with the bonâ fide intention of benefiting the child:
- (ii) if the court refuse to make an order, the court, unless for good cause they may otherwise order, shall award costs to the parent, and the costs so awarded shall, unless some reason to the contrary appears, include such sum as compensation for the expense, trouble, and loss of time incurred in or incidental to his attendance at the court as to the court may seem just and reasonable.

(2) The provisions of this section shall be in substitution for, and not in addition to, the power of a court of summary jurisdiction, on an attendance order not being complied with, to order the child to be sent to an industrial school under Part IV. of this Act.

(3) Nothing in this section shall be construed as affecting the power of a parent to withdraw a child from school on proof to the satisfaction of the local education authority that he will make suitable provision for the child's education in some other way.

55.—(1) A local education authority shall, with the approval of the Board of Education, make arrangements for ascertaining—

- (a) what children in their area, not being imbecile, and not being merely dull or backward, are

Duty of local education authority to determine what children are

defective or
epileptic.

defective, that is to say, what children by reason of mental or physical defect are incapable of receiving proper benefit from the instruction in the ordinary public elementary schools, but are not incapable by reason of that defect of receiving benefit from instruction in such special classes or schools as under this Part of this Act may be provided for defective children ; and

- (b) what children in their area are epileptic children, that is to say, what children, not being idiots or imbeciles, are unfit by reason of severe epilepsy to attend the ordinary public elementary schools.

(2) The local education authority, in making their arrangements under this section, shall provide facilities for enabling any parent, who is of opinion that his child ought to be dealt with under this Part of this Act, to present the child to the local education authority to be examined, although he may not have been required so to do by that authority ; and any local education authority failing to provide those facilities shall be deemed to have acted in contravention of this Part of this Act.

(3) For the purpose of ascertaining whether a child is defective or epileptic within the meaning of this section, a certificate to that effect by a duly qualified medical practitioner approved by the Board of Education shall be required in each case, and the duly qualified medical practitioner shall, if so directed by the local education authority, or, if he is so requested by the parent of the child, before giving a certificate under this section, consult the head teacher of the school, if any, which the child has been attending, or such other person as the local education authority may appoint for the purpose, and a copy of any report made by the head teacher or such other person shall be forwarded to the local education authority.

The certificate shall be in such form as may be prescribed by the Board of Education.

(4) In any legal proceedings by a local education authority, the production of a certificate, purporting to be signed by a duly qualified medical practitioner approved by the Board of Education under this section, to the effect that a child is defective or epileptic within the meaning of this section, shall be sufficient evidence of the facts therein stated, unless the parent or guardian of the child referred to in the certificate requires the medical

practitioner to be called as a witness; but it shall be lawful for the parent or guardian to give evidence in proof that the certificate is incorrect:

Provided that, when a child is discharged from a special school or class on the ground that he is no longer defective or epileptic, the local education authority shall return to the parent of the child any certificate certifying that the child was defective or epileptic, and such certificate shall not be received in evidence in any legal proceedings without the consent of the child or the parent.

(5) For the purpose of the exercise of the powers conferred by this section, it shall be the duty of the parent of any child, who may be required by the local education authority to be examined, to cause the child to attend the examination, and any parent who fails to comply with any such requirement shall be liable to a fine not exceeding five pounds.

(6) In case of doubt as to whether a child is or is not defective or epileptic within the meaning of this Part of this Act, the matter shall be determined by the Board of Education.

(7) The local education authority shall also perform such duties in relation to defective children within the meaning of the Mental Deficiency Act, 1913, as are imposed on them by that Act.

3 & 4 Geo. 5.
c. 28.

56.—(1) Where a local education authority have ascertained that there are in their area defective or epileptic children, they may, and in the case of defective or epileptic children over the age of seven shall, make provision for the education of those children by establishing schools certified by the Board of Education for such children, or in the case of epileptic children over the age of seven or of defective children, either by establishing such schools or by either of the following means:—

Duty of local education authority to provide for education of defective and epileptic children.

- (a) By classes in public elementary schools certified by the Board of Education as special classes for such children; or
- (b) By boarding out, subject to the regulations of the Board, any such child in a house conveniently near to a special class or school certified by the Board for such children.

(2) The duty of a local education authority under this section shall not include—

- (i) a duty to make provision for boarding and lodging a defective or epileptic child unless the Board of Education are satisfied, after considering the report of a duly qualified medical practitioner approved by the Board under the last preceding section, and after consultation with the local education authority, that suitable provision for the child's education cannot be made in any other way, and unless the grants payable out of moneys provided by Parliament in respect of a defective or epileptic child so boarded and lodged, amount to not less than one-half of the cost of conveying such child to and from any school so provided, and of educating, boarding, and lodging and medically attending and treating that child (including, in the case of a school provided by a local education authority, expenditure out of income by the authority by way of interest on or repayment of capital raised, or by way of rent or other similar payment, for the purposes of the provision of the school); or
- (ii) a duty to establish a certified school for boarding and lodging defective or epileptic children, unless the Board of Education are satisfied, after considering the reports of such medical practitioners, and after such consultation as aforesaid, that there are not less than forty-five such children belonging to the area for whose education suitable provision cannot be made in any other way; or
- (iii) in the case of a county council, other than the London County Council, a duty to establish certified schools for boarding and lodging physically defective or epileptic children before the first day of April nineteen hundred and twenty-seven.

(3) The power conferred by this section shall include power to establish or acquire and to maintain schools certified by the Board of Education for defective or epileptic children, and to contribute on such terms and to such extent as may be approved by the Board, towards

the establishment, enlargement, or alteration, and towards the maintenance of schools so certified.

(4) A local education authority may in respect of children resident in, or whose permanent home is in their area and attending special classes or schools certified by the Board of Education for defective or epileptic children and situated in the area of another local education authority, contribute to that other authority the proportionate cost of the provision and maintenance of those special classes or schools.

(5) The local education authority acting under this section shall make provision for the examination, from time to time, of any child dealt with under this section, in order to ascertain whether that child has attained such a mental and physical condition as to be fit to attend the ordinary classes of public elementary schools; and the local education authority shall make provision for that examination in the case of any child whose parent claims the examination of his child, provided that the parent shall not make that claim within less than six months after his child has been examined; and any local education authority failing to make such provision as this subsection requires shall be deemed to have acted in contravention of this Part of this Act.

57. In the event of a local education authority proving to the satisfaction of the Board of Education that the average attendance of defective or epileptic children at a certified class or school provided by such authority has, during the previous three years, been less than fifteen, it shall be lawful for such authority to discontinue the maintenance thereof, and thereupon the authority shall make such alternative provision for the defective and epileptic children belonging to their area as the Board, after consultation with such authority, may approve.

Discontinu-
ance of cer-
tified school.

58.—(1) A local education authority, before deciding what provision shall be made for the education of a defective or epileptic child, shall endeavour to ascertain the wishes of the parents of the child and shall, so far as possible, give effect to their wishes.

Consultation
of parents
and co-oper-
ation with
other autho-
rities and
persons.

(2) A local education authority, in the exercise and performance of their powers and duties with respect to

defective and epileptic children under this Part of this Act, shall have regard to the existing supply of certified schools and classes, and shall, so far as possible, co-operate with other authorities or persons providing or having power to provide certified schools and classes.

Limitation
on liability
of local edu-
cation autho-
rity.

59. Nothing in this Part of this Act shall be construed as imposing a duty on a local education authority to receive in a special class or school established by them for defective or epileptic children any defective or epileptic child—

- (a) who is resident in, or whose permanent home in their opinion is in, the area of another local education authority ; or
- (b) who is resident in a workhouse or in any institution to which he has been sent by the guardians from a workhouse, or boarded out by the guardians ;

unless that other local education authority or the guardians, as the case may be, are willing to contribute towards the expenses of the education and maintenance of the child such sum as may be agreed on between the authorities concerned.

Determina-
tion of resi-
dence.

60.—(1) For the purposes of the provisions of this Part of this Act relating to defective and epileptic children, a child shall be deemed to belong to the area in which the residence or permanent home of the child is for the time being situate :

Provided that, in the case of a child in a school or boarded out in pursuance of those provisions, the local education authority who are making provision for his education shall continue liable to make such provision pending the determination of any question which may be referred to the Board of Education under this section.

(2) If any question arises as to the area to which a child is, for the purposes of those provisions, to be deemed to belong, that question shall be determined by the Board of Education, and the Board on determining the question may direct such financial adjustments between the local education authorities concerned as they may consider just.

*General Provisions as to Education of Blind, Deaf,
• Defective, and Epileptic Children.*

61. For the purposes of this Act the period of compulsory education shall, in the case of a blind, deaf, defective, or epileptic boy or girl, extend to the time when such boy or girl attains the age of sixteen years, and the attendance of such boy or girl at school may be enforced as if it were required by byelaws made under Part IV. of this Act.

Period of education for blind, deaf, defective, and epileptic children.

62. A local education authority for elementary education shall have the same powers in relation to the provision of schools for the purposes of this Part of this Act as they have in relation to the provision of school accommodation under Part III. of this Act.

Powers for providing special schools.

63.—(1) A school shall not be certified by the Board of Education as suitable for providing elementary education for blind or deaf children, or as a school for defective or epileptic children,—

Conditions and effect of grant of certificate to school for blind, deaf, defective, or epileptic children.

- (a) if it is conducted for private profit; nor
- (b) unless it is either managed by a local education authority, or the annual expenses of its maintenance are audited and published in accordance with regulations of the Board of Education; nor
- (c) unless it is open at all times to the inspection of His Majesty's inspectors of schools and of any visitors authorised by any local education authority sending children to the school; nor
- (d) unless the requirements of this Part of this Act are complied with in the case of the school.

(2) Every school so certified may for the purposes of the provisions of this Act relating to school attendance orders, in the case of children to whom this Part of this Act applies, be treated as if it were a public elementary school.

(3) Every such certificate shall be annual.

64.—(1) If and so far as the school, which a child is required to attend in pursuance of this Part of this Act, is not a public elementary school, it must, in all matters relating to the religious instruction and observances of the child, be conducted in accordance with the rules applying to industrial schools, except that in the provisions of the Children Act, 1908, relating to industrial schools, and the rules made thereunder, references to the Secretary of State shall be construed as references to

Provisions as to religious instruction.

the Board of Education; and any local education authority may provide and maintain for the purposes of this Part of this Act a school so conducted.

(2) Every rule made under this section shall be forthwith laid before both Houses of Parliament.

(3) In selecting a school under this Part of this Act the local education authority shall be guided by the rules relating to industrial schools, laid down by the Children Act, 1908, and if a child is boarded out in pursuance of this Part of this Act, the local education authority shall, if possible, arrange for the boarding out being with a person belonging to the religious persuasion of the child's parent.

(4) Where a child is required in pursuance of this Part of this Act to attend any school, the child shall not be compelled to receive religious instruction contrary to the wishes of the parent and shall, so far as practicable, have facilities for receiving religious instruction and attending religious services conducted in accordance with the parent's persuasion, which shall be duly registered on the child's admission to the school.

Liability of
parent for
expenses of
blind, deaf,
defective, or
epileptic
child.

65.—(1) Where the local education authority incur any expense under this Part of this Act in respect of any blind, deaf, defective, or epileptic child, the parent of the child shall be liable to contribute towards the expenses of the child such weekly sum, if any, as, regard being had to the duty of the local education authority to provide a sufficient amount of public school accommodation without payment of fees, may be agreed on between the local education authority and the parent, or, if the parties fail to agree, as may, on the application of either party be settled by a court of summary jurisdiction, and any sum so agreed on or settled may, without prejudice to any other remedy, be recovered by the local education authority summarily as a civil debt.

(2) It shall be the duty of the local education authority to enforce any order made under this section, and any sum received by a local education authority under this section may be applied by that authority in aid of their general expenses.

(3) A court competent to make an order under this section may at any time revoke or vary any order so made.

Saving for
rights of
parents.

66. Payments under this Part of this Act in respect of a blind, deaf, defective, or epileptic child shall not be made on condition of the child attending any school

certified by the Board of Education for blind, deaf, defective, or epileptic children, as the case may be, other than such as may be reasonably selected by the parent, nor refused because the child attends or does not attend any particular school so certified.

•67. Nothing in this Act shall prevent the Board of Education from giving aid from the parliamentary grant to a certified school in respect of education given to blind, deaf, defective, or epileptic children under this Part of this Act, to such amount and on such conditions as may be directed by or in pursuance of the regulations of the Board in force for the time being.

Grants from public money towards education of blind, deaf, defective, and epileptic children.

68. The Board of Education shall in their annual report to Parliament, furnish particulars of their proceedings under this Part of this Act, and give lists of the schools and classes to which they have granted or refused certificates under this Part of this Act during the year to which the report relates, with their reasons for each such refusal.

Particulars to be included in report to Parliament.

69. In this Part of this Act, unless the context otherwise requires—

Interpretation of terms in Part V.

The expression “blind” means too blind to be able to read the ordinary school books used by children: The expression “deaf” means too deaf to be taught in a class of hearing children in an elementary school:

The expression “school” includes any institution in which blind, deaf, defective, or epileptic children are boarded or lodged as well as taught, and any establishment for boarding or lodging children taught in a school certified as a school for blind, deaf, defective, or epileptic children or in a special class certified as a special class for defective or epileptic children:

The expression “elementary education” may include industrial training, whether given in the school which the child attends or not:

The expression “expenses,” when used in relation to a child, includes the expenses of and incidental to the attendance of the child at a school, and of and incidental to the maintenance and boarding out of the child while so attending and the expenses of conveying the child to or from the school.

PART VI.

HIGHER EDUCATION.

General Powers.

Power to aid
higher edu-
cation.

53 & 54 Vict.
c. 60.
7 Edw. 7.
c. 13.
1 Geo. 5. c. 2.

70.—(1) The local education authority for higher education shall consider the educational needs of their area and take such steps as seem to them desirable, after consultation with the Board of Education, to supply or aid the supply of higher education, and to promote the general co-ordination of all forms of education, and for that purpose shall apply all or so much as they deem necessary of their share of the residue under section one of the Local Taxation (Customs and Excise) Act, 1890, as amended by section seventeen of the Finance Act, 1907, and section seventeen of the Revenue Act, 1911, and shall carry forward for the like purpose any balance thereof which may remain unexpended, and may spend such further sums as they think fit.

(2) The council of any non-county borough or urban district shall have power as well as the county council to spend such sums as they think fit for the purpose of supplying or aiding the supply of higher education :

Provided that the amount raised for the purpose of higher education in any year by the council of a non-county borough or urban district out of rates under this section shall not exceed the amount which would be produced by a rate of one penny in the pound.

52 & 53 Vict.
c. 76.
54 & 55 Vict.
c. 4.

General pro-
vision as to
higher educa-
tion powers

(3) A council, in exercising their powers under this Part of this Act, shall have regard to any existing supply of efficient schools or colleges and to any steps taken before the Education Act, 1902, came into operation for the purposes of higher education under the Technical Instruction Acts, 1889 and 1891.

71. The power of a local education authority to supply or aid the supply of higher education under this Act includes—

(a) the power to train teachers and to supply or aid the supply of any education, other than education in a public elementary school or other school of a class which a local education authority for elementary education have power under this Act to provide ; and

(b) the power to make provision for the purpose outside their area in cases where they consider it expedient to do so in the interests of their area ; and

- (c) the power to provide or assist in providing scholarships (which term includes allowances for the maintenance) for, and to pay or assist in paying the fees of, students at schools or colleges or hostels within or without that area.

• **72.**—(1) A council, in the application of money under this Part of this Act, shall not require that any particular form of religious instruction or worship or any religious catechism or formulary which is distinctive of any particular denomination shall or shall not be taught, used, or practised in any school, college, or hostel aided but not provided by the council. Religious instruction.

(2) No pupil shall, on the ground of religious belief, be excluded from or placed in an inferior position in any school, college, or hostel provided by the council.

(3) No catechism or formulary distinctive of any particular religious denomination shall be taught in any school, college, or hostel provided by the council, except in cases where the council, at the request of parents of scholars, at such times and under such conditions as the council think desirable, allow any religious instruction to be given in the school, college, or hostel, otherwise than at the cost of the council; but in the exercise of this power no unfair preference shall be shown to any religious denomination.

(4) In a school or college receiving a grant from, or maintained by, a council under this Part of this Act,

(a) a scholar attending as a day or evening scholar shall not be required, as a condition of being admitted into or remaining in the school or college, to attend or abstain from attending any Sunday school, place of religious worship, religious observance, or instruction in religious subjects in the school or college or elsewhere; and

(b) the times for religious worship or for any lesson on a religious subject, shall be conveniently arranged for the purpose of allowing the withdrawal of any such scholar therefrom.

73.—(1) The managers of a school or institution for science and art may make an arrangement in manner provided by Part I. of the Fourth Schedule to this Act Transfer of schools for science and art.

with a council having powers under this Act with respect to higher education for the transfer of the school or institution to that council, and the council may assent to the arrangement and give effect thereto.

(2) For the purposes of this Act, the expression "a school or institution for science and art" means a school for science and art or a school for science or for art or an institution to which the Literary and Scientific Institutions Act, 1854, applies, and in relation to any such school or institution the expression "managers" includes all persons who have the management of the school or institution whether the legal interest in the site and buildings of the school or institution is or is not vested in them.

Power to aid
research.

74. With a view to promoting the efficiency of teaching and advanced study, a local education authority for higher education may aid teachers and students to carry on any investigation for the advancement of learning or research in or in connection with an educational institution, and with that object may aid educational institutions.

Continuation Schools.

Establish-
ment of con-
tinuation
schools.

75.—(1) It shall be the duty of the local education authority for higher education, either separately or in co-operation with other local education authorities, to establish and maintain, or secure the establishment and maintenance under their control and direction, of a sufficient supply of continuation schools in which suitable courses of study, instruction, and physical training are provided without payment of fees for all young persons resident in their area who are, under this Act, under an obligation to attend such schools.

(2) The council of any county shall, if practicable, provide for the inclusion of representatives of local education authorities for elementary education, in any body of managers of continuation schools within the area of those authorities.

Compulsory
attendance
at continua-
tion schools.

76.—(1) Subject as hereinafter provided, all young persons shall attend such continuation schools at such times, on such days, as the local education authority of

the area in which they reside may require, for three hundred and twenty hours in each year, distributed as regards times and seasons as may best suit the circumstances of each locality, or, in the case of a period of less than a year, for such number of hours, distributed as aforesaid, as the local education authority, having regard to all the circumstances, consider reasonable :

Provided that—

- (a) the obligation to attend continuation schools shall not, within a period of seven years from the appointed day apply to young persons between the ages of sixteen and eighteen, nor after that period to any young person who has attained the age of sixteen before the expiration of that period ; and
- (b) during the like period, if the local education authority so resolve, the number of hours for which a young person may be required to attend continuation schools in any year shall be two hundred and eighty instead of three hundred and twenty.

(2) The local education authority shall not require any young person to attend a continuation school on a Sunday, or on any day or part of a day exclusively set apart for religious observance by the religious body to which he belongs; or during any holiday or half-holiday to which by any enactment regulating his employment or by agreement he is entitled, nor so far as practicable during any holiday or half-holiday which in his employment he is accustomed to enjoy, nor between the hours of seven in the evening and eight in the morning : Provided that the local education authority may, with the approval of the Board, vary those hours in the case of young persons employed at night or otherwise employed at abnormal times.

(3) A local education authority shall not, without the consent of a young person, require him to attend any continuation school held at or in connection with the place of his employment. The consent given by a young person for the purpose of this provision may be withdrawn by one month's notice in writing sent to the employer and to the local education authority.

Any school attended by a young person at or in connection with the place of his employment shall be open to inspection either by the local education authority or by the Board of Education at the option of the person or persons responsible for the management of the school.

(4) In considering what continuation school a young person shall be required to attend, a local education authority shall have regard, as far as practicable, to any preference which a young person or the parent of a young person under the age of sixteen may express, and, if a young person or the parent of a young person under the age of sixteen represents in writing to the local education authority that he objects to any part of the instruction given in the continuation school which the young person is required to attend, on the ground that it is contrary or offensive to his religious belief, the obligation under this Act to attend that school for the purpose of such instruction shall not apply to him, and the local education authority shall, if practicable, arrange for him to attend some other instruction in lieu thereof or some other school.

Where, as respects any area or part of an area, or any class of persons in an area or part of an area, the provisions of the Education Act, 1918, corresponding to this section have come into operation before the commencement of this Act, this section shall, as respects such area or part of an area or class of persons, have effect as if the appointed day were the date on which those provisions came into force with respect to such area or part of an area or class of persons.

Exemptions
from attend-
ance at con-
tinuation
schools.

77.—(1) Any young person—

- (i) who is or was above the age of fourteen years on the appointed day within the meaning of the last foregoing section; or
- (ii) who has satisfactorily completed a course of training for, and is engaged in, the sea service, in accordance with the provisions of any national scheme which may hereafter be established by Order in Council or otherwise, with the object of maintaining an adequate supply of well-trained British seamen, or, pending the establishment of such a scheme,

in accordance with the provisions of any interim scheme approved by the Board of Education; or

- (iii) who is above the age of sixteen years and either—

(a) has passed the matriculation examination of a university of the United Kingdom or an examination recognised by the Board of Education for the purposes of this section as equivalent thereto; or

(b) is shown to the satisfaction of the local education authority to have been up to the age of sixteen under full-time instruction in a school recognised by the Board of Education as efficient or under suitable and efficient full-time instruction in some other manner,

shall be exempt from the obligation to attend continuation schools under this Act unless he has informed the authority in writing of his desire to attend such schools and the authority have prescribed what school he shall attend.

(2) The obligation to attend continuation schools under this Act shall not apply to any young person—

- (i) who is shown to the satisfaction of the local education authority to be under full-time instruction in a school recognised by the Board of Education as efficient or to be under suitable and efficient full-time instruction in some other manner; or

- (ii) who is shown to the satisfaction of the local education authority to be under suitable and efficient part-time instruction in some other manner for a number of hours in the year (being hours during which if not exempted he might be required to attend continuation schools) equal to the number of hours during which a young person is required under this Act to attend a continuation school.

(3) Where a school supplying secondary education is inspected by a British university, or in Wales or Monmouthshire by the Central Welsh Board, under regulations made by the inspecting body after consultation with the Board of Education, and the inspecting body reports to

the Board of Education that the school makes satisfactory provision for the education of the scholars, a young person who is attending, or has attended, such a school shall for the purposes of this section be treated as if he were attending, or had attended, a school recognised by the Board of Education as efficient.

(4) If a young person who is or has been in any school or educational institution, or the parent of any such young person, represents to the Board of Education that the young person is entitled to exemption under the provisions of this section, or that the obligation imposed by the last preceding section does not apply to him, by reason that he is or has been under suitable and efficient instruction, but that the local education authority have unreasonably refused to accept the instruction as satisfactory, the Board shall consider the representation, and, if satisfied that the representation is well founded, shall make an order declaring that the young person is exempt from the obligation to attend a continuation school under this Act for such period and subject to such conditions as may be named in the order :

Provided that the Board may refuse to consider any such representation unless the local education authority or the Board are enabled to inspect the school or educational institution in which the instruction is or has been given. }

Enforcement
of attendance
at continua-
tion schools.

78.—(1) If a young person fails, except by reason of sickness or other unavoidable cause, to comply with any requirement imposed upon him under this Act for attendance at a continuation school, he shall be liable to a fine not exceeding five shillings, or, in the case of a second or subsequent offence, to a fine not exceeding one pound.

(2) If a parent of a young person has condoned to or connived at the failure on the part of the young person to attend a continuation school as required under this Act, he shall, unless an order has been made against him in respect of such failure under section ninety-nine of the Children Act, 1908, be liable to a fine not exceeding two pounds, or, in the case of a second or subsequent offence, whether relating to the same or another young person, to a fine not exceeding five pounds.

79.—(1) The Board of Education may from time to time make regulations prescribing the manner and form in which notice is to be given as to the continuation school (if any) which a young person is required to attend and the times of attendance thereat, and as to the hours during which his employment must be suspended, and providing for the issue of certificates of age, attendance and exemption, and for the keeping and preservation of registers of attendance, and generally for carrying into effect the provisions of this Act relating to continuation schools.

Administra-
tive provi-
sions relating
to continua-
tion schools.

(2) For the purposes of the provisions of this Act relating to continuation schools, the expression "year" means in the case of any young person the period of twelve months reckoned from the date when he ceased to be a child, or any subsequent period of twelve months.

PART VII.

PROVISIONS FOR HEALTH AND WELL-BEING OF SCHOLARS.

Medical Inspection and Treatment.

80.—(1) It shall be the duty of the local education authority for elementary education, with respect to children educated in public elementary schools, to make or otherwise to secure such adequate and suitable arrangements as may be sanctioned by the Minister of Health for attending to the health and physical condition of such children, and to provide for their medical inspection immediately before, or at the time of, or as soon as possible after, their admission to the school, and on such other occasions as the Minister of Health may direct.

Duty of pro-
viding medi-
cal inspec-
tion and
treatment.

(2) A local education authority for higher education with respect to children and young persons attending—

(i) secondary schools provided by them ;

(ii) any school to the governing body of which in pursuance of any scheme made under the Welsh Intermediate Education Act, 1889, any payments are made out of any general fund administered by a local education authority as a governing body under that Act, and any school of which a

52 & 53 Vict.
c. 40.

local education authority are the governing body under that Act ;

- (iii) continuation schools under their direction and control ; and
- (iv) such other schools or educational institutions (not being elementary schools) provided by them as the Minister of Health may direct ;

shall have the duty to provide for the medical inspection of such children and young persons immediately before, or at the time of, or as soon as possible after, their admission to the school or institution, and on such other occasions as the Minister of Health may direct, and the power to make such arrangements as may be sanctioned by the Minister of Health for attending to the health and physical condition of such children and young persons.

(3) A local education authority for higher education may exercise the like powers as respects children and young persons attending any school or educational institution, whether aided by them or not, if so requested by or on behalf of persons having the management thereof.

(4) In the exercise of their powers under this section a local education authority may encourage and assist the establishment or continuance of voluntary agencies and associate with themselves representatives of voluntary associations for the purpose, but shall not establish a general domiciliary service of treatment by medical practitioners for children or young persons, and, in making arrangements for the treatment of children or young persons, a local education authority shall consider how far they can avail themselves of the services of private medical practitioners.

**Recovery of
costs of
medical
treatment.**

81.—(1) Where a local education authority provide for the medical treatment of children or young persons attending any school or institution under the last preceding section, there shall be charged to the parent of every child or young person in respect of any treatment provided for that child or young person such an amount not exceeding the cost of treatment as may be determined by the local education authority, and, in the event of payment not being made by the parent, it shall be the duty of the authority, unless they are satisfied that the parent is unable by reason of circumstances other than

his own default to pay the amount, to require the payment of that amount from that parent, and any such amount may be recovered summarily as a civil debt.

(2) Nothing in this section shall be construed as imposing any obligation on a parent to submit his child to medical inspection or treatment under the last preceding section.

Provision of Meals.

82. A local education authority for elementary education may take such steps as they think fit for the provision of meals for children in attendance at any public elementary school in their area, both on days when the school meets and other days, and for that purpose—

Power of local education authority to aid school canteen committees in the provision of meals for children.

(a) may associate with themselves any committee on which the authority are represented, who will undertake to provide food for those children (in this Act called a "school canteen committee"); and

(b) may aid that committee by furnishing such land, buildings, furniture, and apparatus, and such officers and servants as may be necessary for the organisation, preparation, and service of such meals;

but, save as hereinafter provided, the authority shall not incur any expense in respect of the purchase of food to be supplied at such meals.

83.—(1) There shall be charged to the parent of every child in respect of every meal furnished to that child under this Act such an amount as may be determined by the local education authority, and, in the event of payment not being made by the parent, it shall be the duty of the authority, unless they are satisfied that the parent is unable by reason of circumstances other than his own default to pay the amount, to require the payment of that amount from that parent, and any such amount may be recovered summarily as a civil debt.

Recovery of cost of meals.

(2) The local education authority shall pay over to the school canteen committee so much of any money paid to them by, or recovered from, any parent as may be determined by the authority to represent the cost of the food furnished by the committee to the child of that parent, less a reasonable deduction in respect of the expenses of recovering the same.

Power of local education authority to defray the cost of food in certain cases.

84. Where the local education authority resolve that any of the children attending an elementary school within their area are unable by reason of lack of food to take full advantage of the education provided for them, and have ascertained that funds other than public funds are not available or are insufficient in amount to defray the cost of food furnished in meals under this Act, they may spend out of the rates such sum as will meet the cost of the provision of such food.

Provisions as to teachers.

85. No teacher seeking employment or employed in a public elementary school shall be required as part of his duties to supervise or assist, or to abstain from supervising or assisting, in the provision of meals, or in the collection of the cost thereof.

Miscellaneous Powers.

Power to promote social and physical training.

86. For the purpose of supplementing and reinforcing the instruction and social and physical training provided by the public system of education, and without prejudice to any other powers, a local education authority for elementary education as respects children attending public elementary schools, and a local education authority for higher education as respects other children and young persons and persons over the age of eighteen attending educational institutions, may, with the approval of the Board of Education, make arrangements to supply or maintain or aid the supply or maintenance of—

- (a) holiday or school camps, especially for young persons attending continuation schools;
- (b) centres and equipment for physical training, playing fields (other than the ordinary playgrounds of public elementary schools not provided by the local education authority), school baths, school swimming baths;
- (c) other facilities for social and physical training in the day or evening.

Cleansing of verminous children.

87.—(1) A local education authority for elementary education may direct their medical officer, or any person provided with and, if required, exhibiting the authority in writing of their medical officer, to examine in any public elementary school provided or maintained by the authority the person and clothing of any child attending the school, and, if on examination the medical officer, or

any such authorised person as aforesaid, is of opinion that the person or clothing of any such child is infected with vermin or is in a foul or filthy condition, the local education authority may give notice in writing to the parent of the child, requiring him to cleanse properly the person and clothing of the child within twenty-four hours after the receipt of the notice.

(2) If the person to whom any such notice as aforesaid is given fails to comply therewith within such twenty-four hours, the medical officer, or some person provided with and, if required, exhibiting the authority in writing of the medical officer, may remove the child referred to in the notice from any such school, and may cause the person and clothing of the child to be properly cleansed in suitable premises and with suitable appliances, and may, if necessary for that purpose, without any warrant other than this section, convey to such premises and there detain the child until the cleansing is effected.

(3) Where any sanitary authority within the district of a local education authority have provided, or are entitled to the use of, any premises or appliances for cleansing the person or clothing of persons infested with vermin, the sanitary authority shall, if so required by the local education authority, allow the local education authority to use such premises and appliances for the purpose of this section upon such payment (if any) as may be agreed between them or, in default of agreement, settled by the Minister of Health.

(4) Where, after the person or clothing of a child has been cleansed by a local education authority under this section, the parent of the child allows him to get into such a condition that it is again necessary to proceed under this section, the parent shall be liable to a fine not exceeding ten shillings.

(5) Where a local education authority give notice under this section to the parent of a child, requiring him to cleanse the person and clothing of the child, the authority shall also furnish him with written instructions describing the manner in which the cleansing may best be effected.

(6) The examination and cleansing of girls under this section shall only be effected by a duly qualified medical practitioner or by a woman duly authorised as hereinbefore provided.

(7) For the purposes of this section “medical officer” means any officer appointed under this Act for the purpose of the medical inspection of children attending a public elementary school.

Provision of conveyances and guides.

88.—(1) The powers of a council under this Act shall include the provision of vehicles or the payment of reasonable travelling expenses for teachers or children or other scholars attending school or college whenever the council consider such provision or payment required by the circumstances of their area or of any part thereof.

(2) A local education authority for elementary education may provide guides or conveyances for children who, in the opinion of the authority, are, by reason of any physical or mental defect, unable to attend school without guides or conveyances.

Power to pay expenses of prosecution for cruelty.

89. The powers of a local education authority for elementary education shall include a power to prosecute any person under section twelve of the Children Act, 1908, where the person against whom the offence was committed was a child within the meaning of this Act, and to pay any expenses incidental to the prosecution;

PART VIII.

EMPLOYMENT OF CHILDREN AND YOUNG PERSONS.

Power to make bye-laws for regulating the employment of children.

90.—(1) A local education authority for elementary education may make bye-laws—

(i) prescribing for all children under the age of fourteen, or for boys and girls under that age separately, and with respect to all occupations or to any specified occupation,—

(a) the age below which employment is illegal; and

(b) the hours between which employment is illegal; and

(c) the number of daily and weekly hours beyond which employment is illegal:

(ii) prohibiting absolutely or permitting, subject to conditions, the employment of children under the age of fourteen in any specified occupation.

(2) Bye-laws made under this section shall not apply to children lawfully employed in any factory, workshop,

mine, or quarry on the day when section fourteen of the Education Act, 1918, came into operation whilst so employed.

91.—(1) A local education authority for elementary education may make byelaws with respect to street trading by children and young persons under the age of sixteen, and may by such byelaws—

Power to make bye-laws for the regulation of street trading.

- (a) prohibit such street trading, except subject to such conditions as to age, sex, or otherwise, as may be specified in the byelaw, or subject to the holding of a licence to trade to be granted by the local education authority;
- (b) regulate the conditions on which such licences may be granted, suspended, and revoked;
- (c) determine the days and hours during which, and the places at which, such street trading may be carried on;
- (d) require such street traders to wear badges;
- (e) regulate generally the conduct of such street traders:

Provided as follows:—

- (i) The grant of a licence or the right to trade shall not be made subject to any conditions having reference to the poverty or general bad character of the person applying for a licence or claiming to trade;
- (ii) The local education authority, in making byelaws under this section, shall have special regard to the desirability of preventing the employment of girls under sixteen in streets or public places.

(2) For the purposes of this Part of this Act the expression “street trading” includes the hawking of newspapers, matches, flowers, and other articles, playing, singing, or performing for profit, shoe-blackening, and any other like occupation carried on in streets or public places.

92.—(1) A child under the age of twelve shall not be employed, and a child between the ages of twelve and fourteen shall not be employed on any Sunday for more than two hours, or on any day on which he is required to attend school before the close of school hours on that day, nor on any day before six o'clock in the morning or after eight o'clock in the evening:

General restrictions on the employment of children.

Provided that a local education authority for elementary education may make a byelaw permitting, with respect to such occupations as may be specified, and subject to such conditions as may be necessary to safeguard the interests of the children, the employment of children of the age of twelve or upwards before school hours and the employment of children by their parents, but so that any employment permitted by byelaw on a school day before nine in the morning shall be limited to one hour, and that if a child is so employed before nine in the morning he shall not be employed for more than one hour in the afternoon.

(2) A child under the age of fourteen shall not be employed—

- (a) in street trading ;
- (b) to lift, carry, or move anything so heavy as to be likely to cause injury to the child ;
- (c) in any occupation likely to be injurious to his life, limb, health, or education, regard being had to his physical condition.

(3) If the local education authority for elementary education send to the employer of any child a certificate signed by a registered medical practitioner that the lifting, carrying, or moving of any specified weight is likely to cause injury to the child, or that any specified occupation is likely to be injurious to the life, limb, health, or education of the child, the certificate shall be admissible as evidence in any subsequent proceedings against the employer in respect of the employment of the child.

Power to
require sus-
pension of
employment
of scholars at
continuation
schools.

93. The local education authority for higher education may require, in the case of any young person who is under an obligation to attend a continuation school, that his employment shall be suspended on any day when his attendance is required, not only during the period for which he is required to attend the school, but also for such other specified part of the day, not exceeding two hours, as the authority consider necessary in order to secure that he may be in a fit mental and bodily condition to receive full benefit from attendance at the school:

Provided that if any question arises between the local education authority and the employer of a young person whether a requirement made under this section

is reasonable for the purposes aforesaid, that question shall be determined by the Board of Education, and, if the Board determine that the requirement is unreasonable, they may substitute such other requirement as they think reasonable.

94.—(1) The local education authority for elementary education, if they are satisfied by a report of the school medical officer or otherwise that any child is being employed in such a manner as to be prejudicial to his health or physical development, or to render him unfit to obtain the proper benefit from his education, may either prohibit, or attach such conditions as they think fit to, his employment in that or any other manner, notwithstanding that the employment may be authorised under the other provisions of this Act or any other enactment.

Further restrictions on employment of children.

(2) It shall be the duty of the employer and the parent of any child who is in employment, if required by the local education authority, to furnish to the authority such information as to his employment as the authority may require, and, if the parent or employer fails to comply with any requirement of the local education authority or wilfully gives false information as to the employment, he shall be liable to a fine not exceeding forty shillings.

95. No person—

- (a) shall employ a child in such a manner as to prevent the child from attending school according to this Act and the byelaws made thereunder in force in the district in which the child resides; or
- (b) having received notice of any prohibition or restriction as to the employment of a child issued under the last foregoing section of this Act, shall employ a child in such a manner as to contravene the prohibition or restriction; or
- (c) shall employ a young person in such a manner as to prevent the young person attending a continuation school which he is required to attend under this Act; or
- (d) shall employ a young person at any time when, in pursuance of any requirement issued under this Act in respect of that young

Restriction on employment of children and young persons attending school.

person in connection with attendance at a continuation school, the employment of that young person must be suspended.

Offences and penalties.

96.—(1) If any person employs a child or young person in contravention of the foregoing provisions of this Part of this Act, or of any byelaw made thereunder, he shall be liable to a fine not exceeding forty shillings, or, in case of a second or subsequent offence, not exceeding five pounds.

(2) If any parent of a child or young person has conduced to the commission of the alleged offence by wilful default, or by habitually neglecting to exercise due care, he shall be liable to the like fine.

(3) If any person under the age of sixteen contravenes the provisions of any byelaw made under this Part of this Act, as to street trading, he shall be liable to a fine not exceeding twenty shillings, and in case of a second or subsequent offence, if a child under the age of fourteen, to be sent to an industrial school, and, if not such a child, to a fine not exceeding five pounds.

(4) In lieu of ordering a child to be sent under this section to an industrial school, a court of summary jurisdiction may order the child to be taken out of the charge or control of the person who actually has the charge or control of the child, and to be committed to the charge and control of some fit person who is willing to undertake the same until such child reaches the age of sixteen years, and the provisions of sections twenty-two and twenty-three of the Children Act, 1908, shall, with the necessary modifications, apply to any order for the disposal of a child made under this subsection.

Offences by agents and by parents.

97.—(1) Where the offence of taking a child or young person into employment in contravention of the foregoing provisions of this Part of this Act is in fact committed by an agent or workman of the employer, such agent or workman shall be liable to a fine as if he were the employer.

(2) Where a child or young person is taken into employment in contravention of the foregoing provisions of this Part of this Act on the production by, or with the privity of, the parent of a false or forged certificate, or on the false representation of his parent, that the

child or young person is of an age at which such employment is not in contravention of those provisions, that parent shall be liable to a fine not exceeding forty shillings.

(3) Where an employer is charged with any offence under the foregoing provisions of this Part of this Act he shall be entitled, upon information duly laid by him, to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge, and if, after the commission of the offence has been proved, the court is satisfied that the employer had used due diligence to comply with the said provisions, and that the other person had committed the offence in question without the employer's knowledge, consent, or connivance, the other person shall be summarily convicted of the offence, and the employer shall be exempt from any fine.

(4) Where it is made to appear to the satisfaction of an inspector or other officer charged with the enforcement of this Part of this Act, at the time of discovering any such offence as aforesaid, that the employer had used all due diligence to enforce compliance with this Part of this Act, and also by what person the offence had been committed, and also that it had been committed without the knowledge, consent, or connivance of the employer, and in contravention of his order, then the inspector or officer shall proceed against the person whom he believes to be the actual offender in the first instance without first proceeding against the employer.

98.—(1) If it appear to any justice of the peace, on the complaint of an officer of the local education authority for elementary education acting under this Part of this Act, that there is reasonable cause to believe that a child or young person is employed in contravention of the foregoing provisions of this Part of this Act in any place, whether a building or not, the justice may by order under his hand empower an officer of the local education authority to enter such place at any reasonable time, within forty-eight hours from the date of the order, and examine such place and any person therein touching the employment of any child or young person therein.

Power of
officer of
local authority to enter
place of
employment.

(2) Any person refusing admission to an officer authorised by an order under this section, or obstructing

him in the discharge of his duty, shall for each offence be liable to a fine not exceeding twenty pounds.

Limitation
of time.

99. An information for an offence under any of the foregoing provisions of this Part of this Act other than section ninety-four or ninety-five shall be laid within three months after the commission of the offence.

Restrictions
on children
taking part
in entertain-
ments, &c.

100.—(1) If any person—

- (a) causes or procures any child or young person being a boy under the age of fourteen years, or being a girl under the age of sixteen years, or, having the custody, charge, or care of any such child or young person, allows that child or young person to be in any street, or in any premises licensed for the sale of any intoxicating liquor, other than premises licensed according to law for public entertainments, for the purpose of singing, playing, or performing, or being exhibited for profit, or offering anything for sale, between nine p.m. and six a.m., or in the case of a child under the age of fourteen, between eight p.m. and six a.m. ;
- (b) causes or procures any child under the age of twelve years, or, having the custody, charge, or care of any such child, allows that child to be at any time in any street, or in any premises licensed for the sale of any intoxicating liquor, or in any premises licensed according to law for public entertainments, or in any circus or other place of public amusement to which the public are admitted by payment, for the purpose of singing, playing, or performing, or being exhibited for profit, or offering anything for sale ; or
- (c) causes or procures any child or young person under the age of sixteen years, or, having the custody, charge, or care of any such child or young person, allows that child or young person to be in any place for the purpose of being trained as an acrobat, contortionist, or circus performer, or of being trained for any exhibition or performance which in its nature is dangerous,

that person shall be liable, at the discretion of the court, to a fine not exceeding twenty-five pounds, or alternatively, or in default of payment of such fine, or in addition thereto, to imprisonment, with or without hard labour, for any term not exceeding three months :

Provided that—

- (i) This section shall not apply in the case of any occasional sale or entertainment the net proceeds of which are wholly applied for the benefit of any school or to any charitable object, if such sale or entertainment is held elsewhere than in premises which are licensed for the sale of any intoxicating liquor but not licensed according to law for public entertainments, or if, in the case of a sale or entertainment held in any such premises as aforesaid, a special exemption from the provisions of this section has been granted in writing under the hands of two justices of the peace ; and
 - (ii) A local education authority for elementary education may, if they think it necessary or desirable so to do, from time to time by byelaw extend or restrict the hours mentioned in paragraph (a) of this section, either on every day or on any specified day or days of the week, and either as to the whole of their area or as to any specified part thereof ; and
 - (iii) Paragraphs (b) and (c) of this section shall not apply in any case in respect of which a licence granted under this Part of this Act is in force, so far as that licence extends.
- (2) For the purposes of this section—
- Any person who is the parent of a child or young person shall be presumed to have the custody of the child or young person ; and
 - Any person to whose charge a child or young person is committed by its parent shall be presumed to have charge of the child or young person ; and
 - Any other person having actual possession or control of a child or young person shall be presumed to have the care of the child or young person.

(3) The provisions of the foregoing subsection relating to the parent of a child or young person shall apply to the step parent of the child or young person and to any person cohabiting with the parent of the child or young person in like manner as if such step parent or person were the parent.

(4) Nothing in this section shall affect the provisions of Part IV. of this Act relating to school attendance.

Licences for children to take part in entertainments.

101.—(1) A local education authority for elementary education may, notwithstanding anything in this Part of this Act, or of any byelaw made under that Part, grant a licence for such time and during such hours of the day, and, subject to such restrictions and conditions as are prescribed by rules made by the Board of Education, for any child exceeding twelve years of age residing in the area of the authority to take part in any entertainment or series of entertainments in premises licensed according to the law for public entertainments or in any circus or other public place of amusement as aforesaid, if satisfied of the fitness of the child for the purpose, and if it is shown to their satisfaction that proper provision has been made to secure the health and kind treatment of the children taking part in the entertainment or series of entertainments. Any such licence shall be sufficient protection to all persons acting under or in accordance with the same.

(2) The holder of a licence under this section shall at least seven days before a child takes part in any entertainment or series of entertainments furnish the local education authority of the area in which the entertainment is to take place with particulars of the licence and such other information as the Board of Education may by rules prescribe, and if he fails to furnish such particulars and information as aforesaid he shall be liable to a fine not exceeding five pounds.

(3) A licence under this section may be rescinded by the local education authority of any area in which it takes effect or is about to take effect if the restrictions and conditions of the licence are not observed, and, subject to such restrictions and conditions as are prescribed by rules made by the Board of Education, may be varied or added to by that authority at the request of the holder of the licence.

(4) If the applicant for a licence under this section or a person to whom such a licence has been granted feels aggrieved by any decision of a local education authority, he may appeal to the Board of Education, who may thereupon exercise any of the powers conferred on a local education authority by this section.

(5) Nothing in this section shall affect the provisions of Part IV. of this Act relating to school attendance.

102.—(1) A petty sessional court may, notwithstanding anything in this Part of this Act, or any byelaw made under that Part, grant a licence for such time and during such hours of the day and subject to such restrictions and conditions as the court think fit, for any child exceeding twelve years of age or young person under the age of sixteen to be trained as an acrobat, contortionist, or circus performer, or to be trained for any exhibition or performance which in its nature is dangerous, if satisfied of the fitness of the child or young person for the purpose, and if it is shown to their satisfaction that proper provision has been made to secure the health and kind treatment of the children and young persons being trained as aforesaid, and the court may, upon sufficient cause, vary, add to, or rescind any such licence.

Licences for
training of
children as
acrobatists.

Any such licence shall be sufficient protection to all persons acting under or in accordance with the same.

(2) Where any person applies for a licence under this section, he shall, at least seven days before making the application, give notice thereof to the chief officer of police for the district in which the licence is to take effect, and that officer may appear or instruct some person to appear before the authority hearing the application, and show cause why the licence should not be granted, and the authority to whom the application is made shall not grant the same unless they are satisfied that notice has been properly so given.

(3) Where a licence is granted under this section to any person, that person shall forthwith cause a copy thereof to be sent to the local education authority for elementary education for the area in which the licence is to take effect, and if he fails to cause such copy to be sent shall be liable to a fine not exceeding five pounds.

(4) In this section the expression “chief officer of police” means—

in the city of London, the commissioner of city police;

in the metropolitan police district, the commissioner of police of the metropolis;

elsewhere, the chief constable or head constable, or other officer, by whatever name called, having the chief local command of the police in the police district in reference to which such expression occurs.

(5) Nothing in this section shall affect the provisions of Part IV. of this Act relating to school attendance.

Enforcement
of restric-
tions and
conditions of
licences.

103. It shall be the duty of inspectors and other officers charged with the execution of this Part of this Act, to see whether the restrictions and conditions of any licence under the last two foregoing sections are duly complied with, and any such inspector or officer shall have the same power to enter, inspect, and examine any place of public entertainment at which the employment of a child or young person is for the time being licensed under the said sections, as an inspector appointed under the Factory and Workshop Act, 1901, has to enter, inspect, and examine a factory or workshop under section one hundred and nineteen of that Act, and that section shall apply accordingly.

1 Edw. 7.
c. 22.

Provisions
as to
offences
under
sections 100
to 102.

104. The following provisions shall have effect with respect to offences under sections one hundred to one hundred and two of this Act:—

(a) Any constable may take into custody, without warrant, any person who, within view of such constable, commits any such offence, where the name and residence of such person are unknown to such constable and cannot be ascertained by such constable; and where a constable so arrests a person the inspector or constable in charge of the station to which such person is conveyed shall, unless in his belief the release of such person on bail would tend to defeat the ends of justice, or to cause injury or danger to the child or young person against whom the offence is alleged to have been committed, release the person arrested on his entering into such a recog-

nisance, with or without sureties, as may in his judgment be required to secure the attendance of such person upon the hearing of the charge :

- (b) In any proceeding against any person for any such offence, such person shall be competent but not compellable to give evidence, and the wife or husband of such person may be required to attend to give evidence as an ordinary witness in the case, and shall be competent but not compellable to give evidence :
- (c) Where a person is charged with committing any such offence in respect of two or more children or young persons the same information or summons may charge the offence in respect of all or any of them, but the person charged shall not be liable to a separate penalty for each child or young person unless upon separate informations :
- (d) The same information or summons may also charge any person as having the custody, charge, or care, alternatively or together :
- (e) A person shall not be summarily convicted of any such offence unless the offence was wholly or partly committed within six months before the information was laid ; but, subject as afore-said, evidence may be taken of acts constituting, or contributing to constitute, the offence, and committed at any previous time :
- (f) When any such offence charged against any person is a continuous offence, it shall not be necessary to specify in the information or summons the date of the acts constituting the offence :
- (g) In any proceedings against a person for any such offence a copy of an entry in the wages book of any employer of labour, or, if no wages book be kept, a written statement signed by such employer, or by his foreman, shall be *prima facie* evidence that the wages therein entered, or stated as having been paid to any person, have in fact been so paid : Provided that such copy or statement has been signed by such employer, or his foreman, and that the signature of such employer, or foreman, has been witnessed by the person producing the said copy or statement.

General provisions as to byelaws.

105.—(1) A byelaw made under this Part of this Act shall not have any effect until confirmed by the Secretary of State, and shall not be so confirmed until at least thirty days after the local education authority have published it in such manner as the Secretary of State may by general or special order direct.

(2) The Secretary of State shall, before confirming any byelaw, consider any objections to it which may be addressed to him by persons affected or likely to be affected thereby.

(3) The Secretary of State may, before confirming any byelaw, order that a local inquiry be held with respect to the byelaw or with respect to any objections thereto. The person holding any such inquiry shall receive such remuneration as the Secretary of State may determine, and that remuneration and the expenses of the local inquiry shall be paid by the local education authority making the byelaw.

(4) Byelaws made under this Part of this Act may apply either to the whole of the area of the local education authority, or to any specified part thereof.

Application of Part VIII. to city of London.

106. As respects the city of London the powers and duties of the local education authority for elementary education of carrying into effect this Part of this Act, except those under sections ninety-four and one hundred and one, shall be exercised and performed by the mayor, aldermen, and commons of that city in common council assembled, and any expenses incurred by them in carrying into effect this Part of this Act shall be defrayed out of the general rate.

Powers of giving assistance with respect to the choice of employment.

107.—(1) The powers of a local education authority for higher education shall include a power to make arrangements, subject to the approval of the Board of Education, for giving to boys and girls under the age of eighteen assistance with respect to the choice of suitable employment by means of the collection and communication of information and the furnishing of advice.

(2) The council of a county and the council of a non-county borough or urban district who are a local education authority for elementary education, may, as part of their powers in relation to higher education, enter into and carry into effect arrangements or agreements for the co-operation of the council of the borough or district

with the county council in respect of the exercise by the county council of their powers under this section either—

- (a) by rendering to the county council such assistance as may be arranged or agreed ; or
- (b) by exercising within the borough or district on behalf of the county council all or any of the powers of that council under this section ;

and any such arrangement or agreement may amongst other things provide for the proportion in which the expenses incurred under it are to be borne by the councils respectively.

108.—(1) Nothing in this Part of this Act or in any byelaw made thereunder shall apply to the exercise of manual labour by any child under order of detention in a certified industrial or reformatory school, or by any child while receiving instruction in manual labour in any school.

(2) The provisions of this Part of this Act shall be in addition to any enactments relating to the employment of children and young persons in factories, workshops, mines and quarries, or for giving effect to any international convention regulating the employment of children and young persons.

PART IX.

GENERAL.

Acquisition, appropriation and alienation of Land.

109. A local education authority may for the purposes of their powers and duties under this Act purchase or take on lease any land or any right over land.

Power to acquire land.

110. For the purpose of the purchase of land under this Act by agreement the Lands Clauses Acts (except the provisions thereof with respect to affording access to the special Act) shall be incorporated with this Act, and in construing those Acts for the purposes of this section the special Act shall be construed to mean this Act, and the promoters of the undertaking shall be construed to mean the local education authority, and land shall be construed to include any right over land.

Purchase of land by agreement.

111. A local education authority may be authorised to purchase land compulsorily for the purpose of any of their powers or duties under this Act by means of an order

Purchase of land compulsorily.

submitted to the Board of Education and confirmed by the Board in accordance with the provisions contained in the Fifth Schedule to this Act.

Application
of the School
Sites Acts.

112. For the purpose of the purchase of land under this Act by a local education authority, the School Sites Acts shall apply as if the local education authority were trustees or managers of a school within the meaning of those Acts, and land may be acquired either under the foregoing provisions of this Act or under the School Sites Acts, or partly under the said provisions and partly under the School Sites Acts.

Appropriation of land
for educational
purposes.

113.—(1) A local education authority may—

- (i) appropriate, with the consent of the Board of Education, for the purpose of higher education, any land acquired by them for the purposes of elementary education, or taken over by them as successors of a school board; and
- (ii) appropriate, with the consent of the Board of Education, for the purposes of elementary education, any land acquired by them for the purpose of higher education, either under this Act or the Education Act, 1902, or for similar purposes under any Act repealed by the last mentioned Act; and
- (iii) appropriate, with the consent of, and after inquiry by, the Minister of Health, for any of the purposes of this Act, any land acquired by them otherwise than in their capacity as local education authority.

(2) The council of a non-county borough or urban district may appropriate, with the consent of, and after inquiry by, the Minister of Health, for the purpose of their power to supply or aid the supply of higher education, any land acquired by them under any other power.

(3) The appropriation of land by a local education authority or a council under this section shall be subject in any case to any special covenants or agreements affecting the use of the land in their hands.

(4) Where the capital expenditure in connexion with any land appropriated under this section or any loan for the purpose of repaying that expenditure or any part of that expenditure or loan has been or is charged on, or raised within, any special part of the area of the local

education authority or council, and the Board of Education, or, in the case of land appropriated under this section and acquired by an authority otherwise than in their capacity as local education authority, the Minister of Health, are or is of opinion that the use of the land for the purposes for which it is appropriated will alter the area benefited by the expenditure, the Board of Education, or the Minister of Health, as the case requires, shall order such equitable adjustment in respect thereof to be made as they or he may think right in the circumstances, and the local education authority or council shall comply with any order so made.

114. The council of any county, borough, or urban district may, with the consent of the Board of Education, appropriate any land held by them in their capacity as local education authority for any of the purposes of the council, otherwise than in their capacity as local education authority approved by the Minister of Health :

Appropriation to other purposes of land acquired for educational purposes.

Provided that the council shall not on any lands so appropriated—

- (a) create or permit any nuisance ; or
- (b) sink any well for the public supply of water or construct any cemetery, burial ground, destructor, station for generating electricity, sewage farm, or hospital for infectious disease, unless, after local inquiry and consideration of any objections made by persons affected, the Minister of Health, subject to such conditions as he may think fit and subject in the case of a generating station to the provisions of section eleven of the Electricity (Supply) Act, 1919, authorises the work or construction.

9 & 10 Geo. 5.
c. 100.

115.—(1) The provisions of the Charitable Trusts Acts, 1853 to 1894, which relate to the sale, leasing, and exchange of lands belonging to any charity, shall extend to the sale, leasing, and exchange of the whole or any part of any land or schoolhouse belonging to a local education authority for the purposes of elementary education which may not be required by that authority, with this modification, that the Board of Education shall for the purposes of this section be deemed to be substituted in those Acts for the Charity Commissioners.

Alienation
of land.

(2) A council shall have power, with the consent of and after inquiry by the Board of Education, to alienate any land acquired or held by them for the purposes of

higher education under this Act or any enactment repealed by this Act, and, in the case of the sale of any such land, the proceeds of sale shall be applied in such manner as the Minister of Health may sanction towards the discharge of any loan of the council under this Act or any enactment repealed by this Act, or otherwise for any purpose for which capital may be applied by the council under this Act.

Purchase of land for purposes of elementary school by managers.

116.—(1) The managers of a public elementary school not provided by a local education authority, and, if they obtain the approval of the Board of Education to the establishment of the school, any persons desirous of establishing a public elementary school, may purchase a schoolhouse for the school or a site for the same, and for that purpose the Lands Clauses Acts (except so much as relates to the purchase of land otherwise than by agreement) shall be incorporated with this Act; and in construing those Acts for the purposes of this section the special Act shall be construed to mean this Act and the promoters of the undertaking shall be construed to mean the managers, and land shall be construed to include any right over land.

(2) The conveyance of any land so purchased may be in the form prescribed by the School Sites Acts, or any of them, with this modification, that the conveyance shall express that the land shall be held upon trust for the purposes of a public elementary school within the meaning of this Act, or some one of those purposes which may be specified, and for no other purpose whatever.

(3) Land may be acquired in pursuance of this section either under the Lands Clauses Acts or under the School Sites Acts, or any of them, or partly under one such Act and partly under another such Act.

Exemption of assurance of property for educational purposes from restrictions under the Mortmain Acts.
51 & 52 Vict. c. 42.

54 & 55 Vict. c. 73.
55 & 56 Vict. c. 11.

117.—(1) Any assurance, as defined by section ten of the Mortmain and Charitable Uses Act, 1888, of land or personal estate to be laid out in the purchase of land for educational purposes, whether made before or after the passing of this Act, shall be exempt from any restrictions of the law relating to mortmain and charitable uses, and the Mortmain and Charitable Uses Acts, 1888 and 1891, and the Mortmain and Charitable Uses Act Amendment Act, 1892, shall not apply with respect to any such assurance.

(2) Every assurance of land or personal estate to be laid out in the purchase of land for educational purposes, including every assurance of land to any local authority for any educational purpose or purposes for which such authority is empowered by any Act of Parliament to acquire land, shall be sent to the offices of the Board of Education in London for the purpose of being recorded in the books of the Board as soon as may be after the execution of the deed or other instrument of assurance, or in the case of a will after the death of the testator.

Finance.

118.—(1) The Board of Education shall, subject to the provisions of this Act, by regulations provide for the payment to local education authorities out of moneys provided by Parliament of annual substantive grants in aid of education of such amount and subject to such conditions and limitations as may be prescribed in the regulations, and nothing in this or any other Act of Parliament shall prevent the Board from paying grants to an authority in respect of any expenditure which the authority may lawfully incur. Education grants.

(2) Subject to the regulations made under the next succeeding subsection, the total sums paid to a local education authority out of moneys provided by Parliament and the local taxation account in aid of elementary education or higher education, as the case may be, shall not be less than one half of the net expenditure of the authority recognised by the Board of Education as expenditure in aid of which parliamentary grants should be made to the authority, and, if the total sums payable out of those moneys to an authority in any year fall short of one half of that expenditure, there shall be paid by the Board to that authority, out of moneys provided by Parliament, a deficiency grant equal to the amount of the deficiency, provided that a deficiency grant shall not be so paid as to make good to the authority any deductions made from a substantive grant.

(3) The Board of Education may make regulations for the purpose of determining how the amount of any deficiency grant payable under this section shall be ascertained and paid, and those regulations shall, if the Treasury so direct, provide for the exclusion in the ascertainment of that amount of all or any sums paid by any

Government department other than the Board and of all or any expenditure which in the opinion of the Board is attributable to a service in respect of which payments are made by a Government department other than the Board.

(4) If, by reason of the failure of an authority to perform its duties under this Act or to comply with the conditions on which grants are made, the deficiency grant is reduced or a deduction is made from any substantive grant exceeding five hundred pounds or the amount which would be produced by a rate of a halfpenny in the pound, whichever is the less, the Board of Education shall cause to be laid before Parliament a report stating the amount of and the reasons for the reduction or deduction.

(5) Any regulations made by the Board of Education for the payment of grants shall be laid before Parliament as soon as may be after they are made.

(6) The provisions of this section, so far as they relate to grants to local education authorities in respect of medical inspection and treatment, shall have effect as if the Minister of Health were substituted for the Board of Education:

Provided that for the purpose of facilitating the effective exercise and performance of the powers and duties of the Minister in relation to such grants, the Minister may make arrangements with the Board of Education with respect to the payment of such grants, and the powers and duties of the Minister may under any such arrangements be exercised and performed by the Board on behalf of the Minister and with his authority under such conditions as he may think fit.

Grants to
nursery
schools.

119. Notwithstanding the provisions of any Act of Parliament the Board of Education may, out of moneys provided by Parliament, pay grants in aid of nursery schools, provided that such grants shall not be paid in respect of any such school unless it is open to inspection by the local education authority, and unless that authority are enabled to appoint representatives on the body of managers to the extent of at least one-third of the total number of managers, and before recognising any nursery school the Board shall consult the local education authority.

120. Subject to the provisions of the two last foregoing sections, the provisions contained in the Sixth Schedule to this Act shall apply to the making of parliamentary grants to elementary schools.

Conditions of
Parliamentary
grants

121. Any provisions contained in any instrument regulating the trusts or management of a school or educational institution, which are inconsistent with the conditions prescribed for the receipt of grants out of moneys provided by Parliament in the regulations of the Board of Education, shall, if the governing body of the school or educational institution apply to the Board for a grant under those regulations, cease to operate or operate subject to such modifications as may be necessary in order to render the instrument consistent with those regulations and as may be made by the governing body, so long as grants are made by the Board under those regulations and during any school year in which the school has been recognised by the Board for the purpose of grants.

Powers of
governing
bodies to
comply with
conditions as
to grants.

122.—(1) The expenses of the council of a county under this Act shall, so far as not otherwise provided for, be paid out of the county fund: Provided that, except in the case of the London County Council,—

Expenses in
counties.

- (a) the county council may, if they think fit (after giving reasonable notice to the overseers of the parish or parishes concerned), charge any expenses incurred by them under this Act with respect to higher education on any parish or parishes which, in the opinion of the council, are served by the school or college in connexion with which the expenses have been incurred: Provided that, before charging any such expenses on any area situate within a borough or urban district the council of which is a local education authority for elementary education, the county council shall consult the council of the borough or urban district; and
- (b) the county council shall not raise any sum on account of any expenses incurred by them under this Act as a local education authority for elementary education within any borough or urban district the council of which is the local education authority for that purpose; and
- (c) the county council may charge such portion as they think fit, not being more than three fourths,

of any expenses incurred by them in respect of capital expenditure or rent on account of the provision or improvement of any public elementary school, or in providing means of conveyance for teachers or children attending such a school, on the parish or parishes which, in the opinion of the council, are served by the school; and

(*d*) the county council may raise such portion as they think fit, not being more than three fourths, of any expenses incurred to meet the liabilities on account of loans or rent of any school board transferred to them under the Education Act, 1902, exclusively within the area which formed the school district in respect of which the liability was incurred so far as it is within their area; and

(*e*) a county council may raise any expenses incurred by them to meet any liability of a school authority under the Elementary Education (Blind and Deaf Children) Act, 1893, or the Elementary Education (Defective and Epileptic Children) Act, 1899, which was transferred to the county council by the Education Act, 1902, off the whole of their area or off any parish or parishes which in the opinion of the council are served by the school in respect of which the liability was incurred.

(2) Where before the eighth day of August nineteen hundred and eighteen any portion of such expenses as are mentioned in paragraphs (*c*) and (*d*) of subsection (1) of this section had been charged on or allocated to any area, the county council may cancel or vary the charge or allocation.

(3) If the Minister of Health by order declares that expenses incurred for particular purposes specified in the order may, or may not, be treated under this section as expenses incurred in respect of capital expenditure, no question shall be raised on audit as to the treatment of expenses incurred for those particular purposes if they are treated in accordance with the order.

123.—(1) The expenses of a council of a borough under this Act shall so far as not otherwise provided for, be paid out of the borough fund or rate, or if no borough

56 & 57 Vict.
c. 42.

62 & 63 Vict.
c. 32.

Expenses in
boroughs.

rate is levied, out of a separate rate to be made, assessed, and levied in like manner as the borough rate.

(2) Separate accounts shall be kept by the council of a borough of their receipts and expenditure under this Act, and those accounts shall be made up and audited in like manner and subject to the same provisions as the accounts of a county council, and the enactments relating to the audit of those accounts and to all matters incidental thereto and consequential thereon, including the penal provisions, shall apply in lieu of the provisions of the Municipal Corporations Act, 1882, relating to accounts and audit.

45 & 46 Vict.
c. 50.

(3) Where under any local Act the expenses incurred in any borough for the purposes of elementary education are payable out of some fund or rate other than the borough fund or rate, the expenses of the council of that borough under this Act shall be payable out of that fund or rate instead of out of the borough fund or rate.

124. The expenses of the council of an urban district other than a borough under this Act shall, so far as not otherwise provided for, be paid out of a fund to be raised out of the poor rate of the parish or parishes comprised in the district, according to the rateable value of each parish, subject (so long as they continue in operation) to the provisions of section three of the Agricultural Rates Act, 1896; and the urban district council shall, for the purpose of obtaining payment of those expenses, have the same power as a board of guardians have for the purpose of obtaining contributions to their common fund under the Acts relating to the relief of the poor, and the accounts of those expenses shall be audited as the other expenses of the council.

Expenses
in urban
districts.

125. Any expenses incurred by a council in connexion with any Provisional Order or Order for the purpose of the acquisition of land under this Act, or any enactment repealed by this Act, shall be defrayed as expenses of the council under this Act, and the payment of those expenses shall be a purpose for which the council may borrow money under this Act.

59 & 60 Vict.
c. 16.

Provisions as
to expenses
of Orders,
&c.

126. Any council having powers under this Act may, subject to regulations made by the Board of Education, defray as part of their expenses under this Act any reasonable expenses incurred by them in paying subscriptions towards the cost of, or otherwise in con-

Expenses of
educational
conferences.

nexion with, meetings or conferences held for the purpose of discussing the promotion and organisation of education or educational administration, and the attendance of persons nominated by the council at any such meeting or conference : Provided that—

- (a) the expenses of more than three persons in connexion with any meeting or conference shall not be paid except with the previous sanction of the Board of Education ;
- (b) payments for travelling expenses and subsistence shall be in accordance with the scale adopted by the council ;
- (c) expenses shall not be paid in respect of any meeting or conference outside the United Kingdom unless the Board of Education have sanctioned the attendance of persons nominated by the council at the meeting or the conference ;
- (d) no expenses for any purpose shall be paid under this section without the approval of the Board of Education, unless expenditure for the purpose has been specially authorised or ratified by resolution of the council, after special notice has been given to members of the council of the proposal to authorise or ratify the expenditure, or, where a council has delegated its powers under this section to the education committee, by resolution of that committee after like notice has been given to the members thereof.

Contribu-
tions by
guardians.

127. The board of guardians of any poor law union may contribute towards such of the expenses of providing, enlarging, or maintaining any public elementary school or any special class or school certified by the Board of Education for defective or epileptic children as are certified by the Board to have been incurred wholly or partly in respect of scholars taught at the school or class, who are either resident in a workhouse or in an institution to which they have been sent by the guardians from a workhouse, or boarded out by the guardians.

Contribution
orders in
respect of
border
children.

128.—(1) Where any children resident in the area of any local education authority for elementary education are receiving education in any public elementary school within the area of some other local education authority, the Board of Education may, if they think fit, on the application of that other local education authority (in this

section referred to as the applicant authority), and after giving the first-named local education authority (in this section referred to as the respondent authority) an opportunity of being heard, make a contribution order under this section.

(2) For the purpose of this section, a contribution order means an order directing the respondent authority to pay to the applicant authority annually such sum as the Board of Education think proper in respect of children resident in the area of the respondent authority who, in the opinion of the Board, are properly receiving education in a public elementary school within the area of the applicant authority.

(3) In considering whether children are properly receiving education in a school outside the area in which they reside, the Board of Education shall have regard to the interests of secular instruction, to the wishes of parents as to the education of their children, and to economy of rates.

(4) Any sum due to an applicant authority under a contribution order shall be recoverable as a debt due to that authority from the respondent authority, and the Board of Education may, if they think fit, without prejudice to any other remedy on the part of the applicant authority, pay any such sum to the applicant authority, and deduct any sum so paid from any sums payable to the respondent authority on account of parliamentary grants.

(5) If any question arises between the applicant and respondent authorities as to the amount due in any year under a contribution order, that question shall be referred to the Board of Education, and the decision of the Board shall be final.

(6) The Board of Education may revoke or vary a contribution order on the application either of the applicant authority or of the respondent authority after giving the other authority an opportunity of being heard.

(7) A contribution order shall not be made under this section so as to alter, without the consent of the parties, the effect of any subsisting agreement made between two or more local education authorities with respect to contributions in connexion with the education

within the area of one education authority of children resident within the area of another such authority.

Receipts in
respect of
schools.

129. All receipts in respect of any school maintained by a local education authority, including any parliamentary grant, but excluding in the case of schools not provided by the authority sums specially applicable for purposes for which provision is to be made by the managers, shall be paid to that authority.

Receipts and
payments of
committees
and mana-
gers.

130. Where any receipts or payments of money under this Act are entrusted—

- (a) by the local education authority to any education committee established under this Act, or to the managers of any public elementary school,
- (b) by a council having powers under this Act with respect to higher education to the managers of any school provided by them for the purpose of supplying education other than elementary,

the accounts of those receipts and payments shall be, in the former case, accounts of the local education authority, and, in the latter case, accounts of the council under this Act, but the auditor of those accounts shall have the same powers with respect to the managers as he would have if the managers were officers of the local education authority or council.

Audit of
accounts of
joint educa-
tional bodies.

131. Where any receipts or payments of money under this Act are entrusted to any joint education committee or joint body established under this Act or any enactment repealed by this Act, or otherwise established by two or more local education authorities, the accounts of those receipts and payments shall, unless in any case the Minister of Health directs to the contrary, or any provisions to the contrary which have been approved by the Minister of Health are contained in the scheme or instrument establishing the committee or body, be audited as if the joint committee or body were a separate local education authority, and the enactments relating to the audit of the accounts of local education authorities (including the penal provisions of those enactments) shall apply accordingly.

Borrowing.

132.—(1) A council may borrow for the purposes of this Act in the case of a county council as for the purposes

of the Local Government Act, 1888, and in the case of the council of a county borough, borough, or urban district as for the purposes of the Public Health Acts, but the money borrowed by a county borough, borough, or urban district council shall be borrowed on the security of the fund or rate out of which the expenses of the council under this Act are payable :

51 & 52 Vict.
c. 41.

Provided that in the application of section sixty-nine of the Local Government Act, 1888, to money borrowed under this Act by the council of a county, a period not exceeding sixty years shall be substituted for a period not exceeding thirty years as the maximum period within which the borrowed money is to be repaid, and any money reborrowed for the purpose of discharging a loan raised for the purposes of this Act, or any enactments repealed by this Act, may, if the Minister of Health approves and subject to such conditions as he may impose, be repaid within such period, not exceeding sixty years from the date of the original loan as the Minister of Health may fix.

(2) Money borrowed under this Act or any enactment repealed by this Act (including for this purpose loans transferred to a council under the Education Act, 1902) shall not be reckoned as part of the total debt of a county for the purposes of section sixty-nine of the Local Government Act, 1888, or as part of the debt of a county borough, borough, or urban district for the purpose of the limitation on borrowing under subsections (2) and (3) of section two hundred and thirty-four of the Public Health Act, 1875

38 & 39 Vict.
c. 55.

(3) Where any arrangement for co-operation or combination between councils under this Act or any enactment repealed by this Act provides for the payment of an annual contribution by one council to another, the contribution shall, for the purposes of this section, form part of the security on which money may be borrowed thereunder.

Provisions as to Inspection.

133.—(1) Where the managers of any public elementary school not provided by a local education authority desire to have their school inspected or the

Inspection of
non-provided
schools by

inspector not
one of His
Majesty's
inspectors.

scholars therein examined, as well in respect of religious as of other subjects, by an inspector other than one of His Majesty's inspectors, the managers may fix a day or days not exceeding two in any one year for that inspection or examination.

(2) The managers shall, not less than fourteen days before any day so fixed, cause public notice of the day to be given in the school, and notice in writing of the day to be conspicuously affixed in the school.

(3) On any such day any religious observance may be practised, and any instruction in religious subjects given at any time during the meeting of the school, but any scholar who has been withdrawn by his parent from any religious observance or instruction in religious subjects shall not be required to attend the school on any such day.

Inspection
of secondary
schools, &c.

134.—(1) The Board of Education may by their officers, or, after taking the advice of the consultative committee hereinbefore mentioned, by any university or other organisation, inspect any school supplying secondary education and desiring to be so inspected, for the purpose of ascertaining the character of the teaching in the school and the nature of the provisions made for the teaching and health of the scholars, and may so inspect the school on such terms as may be fixed by the Board of Education with the consent of the Treasury :

Provided that the inspection of schools established by scheme under the Welsh Intermediate Education Act, 1889, shall, subject to regulations made by the Treasury under section nine of that Act, be conducted as heretofore by the Central Welsh Board for Intermediate Education, and that the said Board shall be recognised as the proper organisation for the inspection of any such schools as may be desirous of inspection under this section.

(2) The council of any county or county borough may out of any money applicable for the purpose of higher education pay or contribute to the expenses of inspecting under the foregoing subsection any school within their county or borough.

(3) If the governing body of any school or educational institution not liable to inspection by any Government department, or, if there is no governing body, the headmaster, requests the Board of Education to

inspect the school or institution and to report thereon, the Board of Education may do so, if they think fit, free of cost; but this subsection shall be without prejudice to the provisions relating to the Central Welsh Board contained in this section.

Provisions as to Age.

135. Where the age of any child or young person under the age of sixteen years is required to be ascertained or proved for the purposes of the provisions of this Act relating to elementary education, or for any purpose connected with the elementary education or employment in labour of the child or young person, any person on presenting a written requisition in such form and containing such particulars as may be from time to time prescribed by the Minister of Health, and on payment of a fee of sixpence, shall be entitled to obtain a certified copy under the hand of the registrar or superintendent registrar of the entry in the register under the Births and Deaths Registration Acts, 1836 to 1901, of the birth of the child or young person; and such form of requisition shall on request be supplied without charge by every superintendent registrar and registrar of births, deaths, and marriages.

Certificates of birth for purposes of Act.

136.—(1) Every registrar of births and deaths, when and as required by a local education authority for elementary education, shall transmit, by post or otherwise, a return of such of the particulars registered by him concerning deaths and births of children as may be specified in the requisition of the authority.

Returns of registrars of births and deaths to local education authorities.

(2) The local education authority may supply a form, approved by the Minister of Health, for the purpose of the return, and in that case the return shall be made in the form so supplied.

(3) The local education authority may pay, as part of their expenses, to the registrar making such return such fee as may be agreed upon between them and the registrar, not exceeding twopence for every birth and death entered in such return.

137. The Board of Education may by order make regulations with respect to certificates of age for the purposes of this Part of this Act, and those regulations shall be laid before Parliament as soon as may be after

Regulations as to certificates of age.

they are made, and shall be observed by the local education authority and the managers of certified efficient schools.

Provisions
for avoidance
of broken
school terms.

138.—(1) If a child who is attending or is about to attend a public elementary school, or a school certified by the Board of Education under Part V. of this Act, attains any year of age during the school term, the child shall not, for the purpose of any enactment or byelaw, whether made before or after the passing of this Act, relating to school attendance, be deemed to have attained that year of age until the end of the term.

(2) The local education authority for elementary education may make regulations with the approval of the Board of Education providing that a child may, in such cases as are prescribed by the regulations, be refused admission to a public elementary school, or such certified school as aforesaid, except at the commencement of a school term.

Legal Proceedings.

Summary pro-
secution of
proceedings
under Act.

139. All offences and fines under this Act or the byelaws made thereunder shall be punishable and recoverable on summary conviction.

Powers to
enforce
attendance
of child
before court.

140. Any justice of the peace may require by summons any parent or employer of a child or young person required by this Act, or by any byelaws, orders or other instruments made thereunder, to attend school, to produce the child or young person before a court of summary jurisdiction, and if any person fails without reasonable excuse to the satisfaction of the court to comply with the summons, he shall be liable in respect of each offence to a fine not exceeding twenty shillings.

Proof of age.

141. Where a child or young person is apparently of the age alleged for the purposes of any proceeding under this Act or a byelaw made thereunder, it shall lie on the defendant to prove that the child or young person is not of that age.

Proof of
attendance at
school.

142. Where a local education authority are, by reason of the default of the managers or proprietor of an elementary or continuation school, unable to ascertain whether a child or young person, who is resident within the area of that authority and attends that school, attends

school in conformity with this Act or any byelaws, orders or other instruments made thereunder, it shall lie on the defendant in any proceeding under this Act to show that the child or young person has attended school in conformity with this Act or with the said byelaws, orders or instruments.

143. A certificate purporting to be under the hand of the principal teacher of a public elementary school or continuation school, stating that a child or young person is or is not attending that school, or stating the particulars of the attendance of a child or young person at that school, shall, in any proceeding under this Act or a byelaw made thereunder, be evidence of the facts stated in the certificate.

Certificate of teacher as to attendance.

144. No legal proceedings for non-attendance or irregular attendance at school (including a continuation school) shall be commenced in a court of summary jurisdiction by any person appointed to carry out this Act or any byelaws made thereunder, except by the direction of not less than two members of the education committee of a local education authority, or of any sub-committee appointed by that committee for school attendance purposes.

Conditions as to institution of proceedings.

145. A local education authority may appear in all legal proceedings by their clerk, or by some member of the authority authorised by resolution of the authority; and every such resolution shall appear upon the minutes of the proceedings of the authority, but every such resolution shall, until the contrary is proved, be deemed in any legal proceeding to appear upon those minutes.

Appearance of local education authority in legal proceedings.

146. Any person may appear in any proceeding under Part IV. or Part V. of this Act or a byelaw made thereunder, by any member of his family or any other person authorised by him in that behalf.

Appearance by member of family.

147. It shall not be a defence to proceedings relating to school attendance under this Act or any byelaws made thereunder that a child is attending a school or institution providing efficient elementary instruction unless the school or institution is open to inspection either by the local education authority or by the Board of Education, and unless satisfactory registers are kept of the attendance of the scholars thereat.

Limitation on right to certain defences.

Officers.

Appoint-
ment of
officers.

148.—(1) A local education authority may appoint necessary officers, including teachers, to hold office during the pleasure of the authority, and may assign to them such salaries or remuneration (if any) as they think fit, and may remove any of those officers.

(2) Two or more local education authorities may arrange for the appointment of the same person to be an officer to both or all those authorities.

(3) Officers appointed under this section shall perform such duties as may be assigned to them by the authority or authorities who appoint them.

School
attendance
officers.

149. A local education authority may, if they think fit, appoint an officer or officers to enforce this Act and any byelaws, orders, or other instruments made thereunder with reference to the attendance of children or young persons at school.

Enforcement of Duties of Local Education Authority.

Power to
enforce
duties of
local educa-
tion autho-
rity.

150. If the local education authority fail to fulfil any of their duties under this Act, or fail to provide such additional public school accommodation as is, in the opinion of the Board of Education, necessary in any part of their area, the Board of Education may, after holding a public inquiry, make such order as they think necessary or proper for the purpose of compelling the authority to fulfil their duty, and any such order may be enforced by mandamus.

Powers of
Board of
Education
on default of
local educa-
tion autho-
rity in
respect of
elementary
schools.

151.—(1) The Board of Education, without prejudice to their right to take any other proceedings, may, if they are satisfied that it is expedient to do so on account of any default of a local education authority in the performance of their duties as respects any elementary school,—

- (a) make orders for recognising as managers of that school any persons who are acting as managers thereof, and for rendering valid any act, thing, payment, or grant which in the opinion of the Board might otherwise be invalid by reason of the default of the authority, and every such order shall have effect accordingly; and
- (b) if it appears to the Board that the managers of that school have, for the purpose of maintaining

and keeping efficient the school, incurred any expenses for which provision should have been made by the local education authority, pay to the managers such amount in respect of those expenses as in the opinion of the Board was properly incurred.

(2) Any sums paid by the Board of Education under this section shall be a debt due to the Crown from the local education authority, and, without prejudice to any other remedy, may be deducted from any sums payable to that authority on account of parliamentary grants.

Returns, Inquiries, Reports and Notices.

152.—(1) Every local education authority shall make such report and returns, and give such information to the Board of Education, as the Board may require. General returns.

(2) Every council having powers under this Act with respect to higher education, shall give to the Board of Education such information with respect to the exercise of those powers as the Board may from time to time require.

153.—(1) The managers of a public elementary school shall truly fill up and return in manner required by a local education authority for elementary education any forms supplied to the managers by that authority for the purpose of obtaining reasonable information with respect to the attendance of children residing in their area who attend that school, or shall cause such information to be given as will enable the authority to ascertain whether a child resident within their area and attending that school attends the same in manner required by the byelaws in force in the area. Returns as to school attendance.

(2) If the managers fail to fill up and return the forms so supplied or to give the required information, they shall cause to be produced to such member or officer of the local education authority or other person as may be duly authorised in that behalf by the authority at any reasonable time when required by him, the registers and other books and documents containing information with respect to the attendance of children at the school, and shall permit him to inspect and take copies of and extracts from the same.

(3) If any difference arises between a local education authority and the managers of a public elementary school as to whether the information required by the forms is or is not reasonable, that difference shall be referred to the Board of Education, whose decision shall be final.

Preservation
of registers.

154. The Board of Education may by order make regulations with respect to the preservation of registers of school attendance, and such regulations shall be laid before Parliament as soon as may be after they are made and shall be observed by local education authorities and the managers of certified efficient schools.

Collection
of information
respecting
schools.

155.—(1) In order that full information may be available as to the provision for education and the use made of such provision in England and Wales,—

- (a) it shall be the duty of the responsible person as hereinafter defined when required by the Board of Education to furnish to the Board such particulars with respect to the school or institution as may be prescribed by regulations made by the Board; and
- (b) when a school or educational institution not in receipt of grants from the Board of Education is opened after, or has been opened within three months before, the commencement of this Act it shall be the duty of the responsible person as hereinafter defined, to furnish to the Board of Education in a form prescribed by the Board within three months of the opening thereof the name and address of the school or institution and a short description of the school or institution:

Provided that the Board may exempt from the requirements of this subsection any schools or educational institutions with respect to which the necessary information is already in the possession of the Board or is otherwise available.

(2) If the responsible person fails to furnish any information required by this section, he shall be liable to a fine not exceeding ten pounds, and to a fine not exceeding five pounds for every day on which the failure continues after conviction therefor.

(3) For the purposes of this section, “the responsible person” means the secretary or person performing the

duty of secretary to the governing body of the school or institution, or, if there is no governing body, the headmaster or person responsible for the management of the school or institution.

(4) Any regulations made by the Board of Education under this section with respect to the particulars to be furnished shall be laid before Parliament as soon as may be after they are made.

156.—(1) The Board of Education may hold a public inquiry for the purpose of the exercise of any of their powers or the performance of any of their duties under this Act. Public inquiries by Board of Education.

(2) The following provisions shall (except as otherwise provided by this Act) apply to any public inquiry held by the Board of Education:—

- (a) The Board shall appoint a person or persons to hold the inquiry:
- (b) The person or persons so appointed shall hold a sitting or sittings in some convenient place in the neighbourhood to which the subject of the inquiry relates, and thereat shall hear, receive, and examine any evidence and information offered, and hear and inquire into the objections or representations made respecting the subject matter of the inquiry, with power from time to time to adjourn any sitting:
- (c) Notice shall be published in such manner as the Board direct of every such sitting, except an adjourned sitting, seven days at least before the holding thereof:
- (d) The person or persons so appointed shall make a report in writing to the Board setting forth the result of the inquiry and the objections and representations, if any, made thereat, and any opinion or recommendations submitted by him or them to the Board:
- (e) The Board shall furnish a copy of the report to any local education authority concerned with the subject matter of the inquiry, and, on payment of such fee as may be fixed by the Board, to any person interested:
- (f) The Board may, where it appears to them reasonable that such an order should be made, order the payment of the whole or any part of

the costs of the inquiry either by any local education authority to whose administration the inquiry appears to the Board to be incidental, or by the applicant for the inquiry, and may require the applicant for an inquiry to give security for the costs thereof:

- (g) Any order so made shall certify the amount to be paid by the local education authority or the applicant, and any amount so certified shall, without prejudice to the recovery thereof as a debt due to the Crown, be recoverable by the Board summarily as a civil debt from the authority or the applicant as the case may be.

Orders, con-
sents, &c., by
Minister of
Health.

157. Subsections (1) and (5) of section eighty-seven of the Local Government Act, 1888 (which relate to local inquiries), shall apply with respect to any order, consent, sanction, or approval which the Minister of Health is authorised to make or give under this Act.

Service of
notices, &c.

158.—(1) Any notice or other document required by this Act or any regulations or byelaws made thereunder to be served or sent may be served or sent by post unless the contrary is expressly provided.

(2) Any notice or other document required to be served on or sent to a local education authority under this Act may be served or sent by giving it to the clerk of the authority or sending it to, or delivering it at, the offices of the authority.

(3) Any notice or other document requiring authentication by the local education authority may be signed by their clerk.

Evidence of
certificates,
&c. issued
by local
education
authorities.

159. All orders, certificates, notices, requirements, and documents of a local education authority under this Act, if purporting to be signed by the clerk of the authority or of the education committee, or by the director of, or secretary for, education, shall until the contrary is proved be deemed to be made by the authority and to have been so signed, and may be proved by the production of a copy thereof purporting to have been so signed.

Forging
of certifi-
cates.

160. If any person forges or counterfeits any certificate for the purpose of this Act, or gives or signs any such certificate which is to his knowledge false in any material particular, or knowing any such certificate

to be forged, counterfeit, or false, makes use thereof, that person shall be liable in respect of each offence to imprisonment for a period not exceeding three months, with or without hard labour, or to a fine not exceeding twenty pounds.

161.—(1) Notices and other matters required to be published under this Act shall, when no particular method is provided or indicated, be published either by advertisement, and by affixing the same on the doors of churches and chapels, and other public places, or in such other manner as the Board of Education may either generally or with respect to any particular area, place, or notice, or class of areas, places, or notices, by order determine, as being in their opinion sufficient for giving information to all persons interested. Publication of notices.

(2) All overseers, assistant overseers, and officers of guardians shall comply with the directions of the Board of Education given under this section with respect to notices, and any expenses incurred by them in carrying into effect this section may be paid as their expenses under the Acts relating to the relief of the poor.

(3) If any person wilfully tears down, injures, or defaces any notice affixed in pursuance of this Act or any order of the Board of Education made thereunder, he shall be liable in respect of each offence to a fine not exceeding forty shillings.

162. After the expiration of three months from the date of any order or requisition of the Board of Education under this Act, or any enactment repealed by this Act, that order or requisition shall be presumed to have been duly made, and to be within the powers of this Act, and no objection to the legality thereof shall be entertained in any legal proceeding whatever. Provision as to Board of Education documents.

163. The Board of Education shall annually lay before both Houses of Parliament a report of their proceedings under this Act during the preceding year. Annual report.

Miscellaneous.

164. A local education authority for elementary education shall be able and shall be deemed always to have been able to be constituted trustees for any educational endowment or charity for purposes connected with Power of local education authority to accept gifts

for educa-
tional pur-
poses.

education, whether the endowment or charity was established before or after the commencement of this Act, and shall have power to accept any real or personal property given to them as an educational endowment or upon trust for any purposes connected with education: Provided that—

- (1) Nothing in this section shall enable such a local education authority to be trustees for or accept any educational endowment, charity, or trust, the purposes of which are inconsistent with the principles on which the authority are required to conduct schools provided by them; and
- (2) Every school connected with any such endowment, charity, or trust shall be deemed to be a school provided by the local education authority, except that nothing in this section shall authorise the authority to expend any money for any purpose other than elementary education; and
- (3) Nothing in this section shall affect the law of mortmain or charitable uses.

Tenure of
teacher, and
power to
recover pos-
session of
schoolhouse.
4 & 5 Vict.
c. 38.

165. Sections seventeen and eighteen of the School Sites Act, 1841 (which relate to the tenure of the office of the schoolmaster or schoolmistress, and to the recovery of possession of any premises held over by a master or mistress who has been dismissed or ceased to hold office), shall extend to the case of an elementary school provided by a local education authority, and of any master or mistress of such a school, in the same manner as if the local education authority were the trustees or managers of the school as mentioned in those sections.

Exemption
of school
buildings
from build-
ing byelaws.
38 & 39 Vict.
c. 55.

166. The provisions of any byelaws made by any local authority under section one hundred and fifty-seven of the Public Health Act, 1875, as amended by any other Act, with respect to new buildings (including provisions as to the giving of notices and deposit of plans and sections), and any provisions in any local Act dealing with the construction of new buildings, and any byelaws made with respect to new buildings under any local Act, shall not apply in the case of any new buildings being school premises to be erected, or erected, according to plans which are under any regulations relating to the payment of grants required to be, and have been, approved by the Board of Education.

167.—(1) No person shall be assessed or rated to or for any local rate in respect of any land or buildings used exclusively or mainly for the purpose of the schoolrooms, offices, or playground of a public elementary school not provided by the local education authority, except to the extent of any profit derived by the managers of the school from the letting thereof.

Exemption
of non-pro-
vided schools
from rates.

(2) In this section the expression “local rate” means a rate the proceeds of which are applicable to public local purposes and which is leviable on the basis of an assessment in respect of the yearly value of property, and includes any sum which, though obtained in the first instance by a precept, certificate, or other instrument requiring payment from some authority or officer, is or can be ultimately raised out of a local rate as before defined.

168. Where with a view to following the profession of teacher a person has, in pursuance of regulations made by the Board of Education, entered into an undertaking that he will, in consideration of any grant made by the Board in respect of his maintenance, education, and training, complete the course of education or training specified in the undertaking, and will subsequently follow the profession of teacher in the manner and for the period specified in the undertaking, and in the event of failure to do so will repay to the Board such proportion of the grants made by the Board as is specified in the undertaking, the undertaking shall be binding on him notwithstanding that he was an infant at the time when the undertaking was given, and any sum repayable in accordance with the undertaking shall be recoverable as debts to the Crown.

Validity of
undertakings
by persons
intending to
become
teachers.

Supplemental.

169.—(1) The amount which would be produced by any rate in the pound shall be estimated for the purposes of this Act in accordance with regulations made by the Minister of Health.

Interpre-
tation.

(2) Any school which was provided by a school board or was deemed to have been so provided shall be treated for the purposes of this Act as a school which has been provided by the local education authority, or which is deemed to have been so provided as the case may be.

3 Edw. 7.
c. 24.

(3) Any public elementary school provided by the London School Board before the passing of the Education (London) Act, 1903, which is wholly or partly situated outside the administrative county of London, and which at the commencement of this Act is maintained by the local education authority for that county, shall, for the purposes of this Act, be treated as wholly situated within that county and within the nearest metropolitan borough.

(4) Any public elementary school provided by the local education authority which is situated partly in one metropolitan borough and partly in another shall, for the purposes of this Act, be deemed to be situated in such one of those boroughs as the local education authority determine.

(5) For the purposes of this Act the council of the Isles of Scilly shall be the local education authority for the Scilly Islands, and the expenses of the council under this Act shall be general expenses of the council.

Definition
of special
terms.

170. In this Act, unless the context otherwise requires,—

- (1) The expression “elementary school” means (except in the case of courses of advanced instruction given in pursuance of this Act) a school or department of a school at which elementary education is the principal part of the education there given, and does not include any school or department of a school at which the ordinary payments in respect of the instruction from each scholar exceed ninepence a week, or any school carried on as an evening school under the regulations of the Board of Education or a continuation school:
- (2) The expression “certified efficient school” means a public elementary school, a school certified by the Board of Education as suitable for providing elementary education for blind, deaf, defective, or epileptic children, and any workhouse school certified to be efficient by the Minister of Health, and any public or state-aided elementary school in Scotland, and any national school in Ireland, and also any elementary school which is not conducted for private profit, and is

open at all reasonable times to the inspection of His Majesty's inspectors, and requires the like attendance from its scholars as is required in a public elementary school, and keeps such registers of those attendances as may be for the time being required by the Board of Education, and is certified by that Board to be an efficient school:

- (3) The expression "higher education" means education other than elementary education:
- (4) The expression "practical instruction" means instruction in cookery, laundrywork, housewifery, dairywork, handicrafts, and gardening, and such other subjects as the Board of Education declare to be subjects of practical instruction:
- (5) The expression "college" includes any educational institution, whether residential or not:
- (6) The expression "schoolhouse" in relation to an elementary school includes the teacher's dwelling-house and the playground (if any) and the offices and all premises belonging to or required for a school:
- (7) The expression "school year" means a year or other period for which an annual parliamentary grant is for the time being paid or payable under the Education Code:
- (8) The expression "school term" means the term as fixed by the local education authority:
- (9) The expression "His Majesty's inspectors" means the inspectors of schools appointed by His Majesty on the recommendation of the Board of Education:
- (10) The expression "managers" in relation to an elementary school includes all persons who have the management of the school, whether the legal interest in the schoolhouse is or is not vested in them:
- (11) The expression "ratepayer" includes every person who under the provisions of the Poor

32 & 33 Vict.
c. 41.

Rate Assessment and Collection Act, 1869, is deemed to be duly rated :

- (12) The expression "parent" in relation to a child or young person includes guardian and every person who is liable to maintain or has the actual custody of the child or young person :
- (13) The expression "child," except in relation to public school accommodation, means a child of any age up to the age when his parents cease to be under an obligation to cause him to receive efficient elementary instruction or to attend school under the enactments relating to elementary education and the byelaws made thereunder, and in any provisions referring to children attending public elementary schools it includes a child of any age who is attending any such school :
- (14) The expression "young person" means a person under eighteen years of age who is no longer a child :
- (15) The expression "minor local authority" means, as respects any school, the council of any borough, including a metropolitan borough, or urban district, or the parish council, or (where there is no parish council) the parish meeting, of any parish which appears to the county council to be served by the school :
- (16) The expressions "powers," "duties," "property," and "liabilities" have the same meanings as in the Local Government Act, 1888 :
- (17) The expression "trust deed" includes any instrument regulating the trusts or management of a school or college :
- (18) The expressions "employ" and "employment" used in reference to a child or young person include employment in any labour exercised by way of trade or for the purposes of gain, whether the gain be to the child or young person or to any other person :
- (19) The expression "Education Code" means the Code of the Minutes of the Board of Education for the time being in force with respect to public elementary schools :

- (20) The expression "sea service" has the same meaning as in the Merchant Shipping Acts, 1894 to 1916, and includes the sea-fishing service:
- (21) The expression "borough" does not include a metropolitan borough except where otherwise expressly provided, and except as respects the borough of Woolwich so far as is necessary to enable the council of that borough to make any contribution which they are authorised to make under section nineteen of the London Government Act, 1899: 62 & 63 Vict.
c. 14.
- (22) The expression "metropolitan borough" includes the City of London, and the expression "council of a metropolitan borough" includes the mayor, aldermen, and commons of the City of London in common council assembled.

171.—(1) In any enactment referring to or applying the Elementary Education Acts, 1870 to 1900, local education authorities for elementary education and the areas for which they act shall be substituted for school boards and school districts, and the fund or rate out of which the expenses of such a local education authority are payable for the school fund or local rate, so far as the reference or application extends. Construction
of previous
Acts or
documents.

(2) References in any enactment or in any provision of a scheme made under the Charitable Trusts Acts, 1853 to 1894, or the Endowed Schools Acts, 1869 to 1889, or the Elementary Education Acts, 1870 to 1900, to any provisions of the Technical Instruction Acts, 1889 and 1891, or either of those Acts shall, unless the context otherwise requires, be construed as references to the provisions of Part VI. of this Act, and the provisions of this Act shall apply with respect to any school, college, or hostel established, and to any obligation incurred, under the Technical Instruction Acts, 1889 and 1891, as if the school, college, or hostel had been established or the obligation incurred under Part VI. of this Act.

(3) The Minister of Health may, after consultation with the Board of Education, by order make such adaptations in the provisions of any local Act (including any Act to confirm a Provisional Order and any scheme under the Municipal Corporations Act, 1882, as amended by any subsequent Act) as may seem to him to be necessary 45 & 46 Vict.
c. 50.

to make those provisions conform with the provisions of this Act, and may also in like manner, on the application of any council who have power as to education under this Act and have also powers as to education under any local Act, make such modifications in the local Act as will enable the powers under that Act to be exercised as if they were powers under this Act.

Any order made under this provision shall operate as if enacted in this Act.

Repeal.

172. The enactments mentioned in the Seventh Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule, except so far as they relate to Scotland or Ireland :

Provided that—

- (a) Nothing in this repeal shall affect any order, certificate, byelaw, rule, or regulation made or granted under any enactment hereby repealed, but any such order, certificate, byelaw, rule, or regulation shall continue in force and, so far as it could have been made or granted under this Act, shall have effect as if made or granted under this Act :
- (b) Any byelaw, which by virtue of section eight of the Education Act, 1918, is to have effect as if the age of fourteen were substituted for a lower age, shall continue to have such effect, and nothing in this section shall be construed as reviving any provision of any byelaw granting exemption from attendance at school which by virtue of the said section has ceased to have effect or as prejudicing any exemption from school attendance lawfully granted before the commencement of this Act :
- (c) Any person holding office or serving or deemed to be serving under any enactment hereby repealed shall continue in office or service as if he had been appointed under this Act ; and nothing in this repeal shall prejudice or affect any right to compensation or superannuation allowance which a person would otherwise have had on the abolition of his office or on

diminution or loss of fees or salary, or on his retirement from office, or the amount thereof :

- (d) Nothing in this repeal shall affect the manner in which any money is authorised to be applied under any enactment hereby repealed :
- (e) Nothing in this repeal shall affect the operation of subsection (3) of section three of the Employment of Children Act, 1903, or the other provisions of that Act so far as required for the enforcement of that subsection, in their application to children who at the commencement of this Act are employed in factories or workshops so long as they continue to be so employed : 3 Edw. 7.
c. 45.
- (f) Any document referring to any Act or enactment hereby repealed shall be construed to refer to this Act or to the corresponding enactment of this Act.

173.—(1) This Act may be cited as the Education Act, 1921.

(2) This Act shall not extend to Scotland or Ireland.

(3) This Act shall come into operation on the appointed day, and the appointed day shall be such day, not being earlier than the first day of January, nineteen hundred and twenty-two, as the Board of Education may appoint, and different days may be appointed for different purposes and for different provisions of this Act, for different areas or parts of areas and for different persons or classes of persons :

Provided that the appointed day for the purposes of the repeal of any particular enactment shall not be earlier than the day fixed as the appointed day for the coming into operation of the corresponding provisions of this Act.

Short title,
extent
and com-
mencement.

SCHEDULES.

Section 4.

FIRST SCHEDULE.

PART I.

EDUCATION COMMITTEE SCHEMES.

(1) Every scheme constituting an education committee shall provide—

- (a) for the appointment by the council of at least a majority of the committee, and the persons so appointed shall be persons who are members of the council, unless, in the case of a county, the council otherwise determine;
- (b) For the appointment by the council, on the nomination or recommendation, where it appears desirable, of other bodies (including associations of voluntary schools), of persons of experience in education, and of persons acquainted with the needs of the various kinds of schools in the area for which the council acts;
- (c) for the inclusion of women as well as men among the members of the committee.

(2) Any such scheme may, for all or any purposes of this Act, provide for the constitution of a separate education committee for any area within a county, or for a joint education committee for any area formed by a combination of counties, boroughs, or urban districts, or of parts thereof, and in the case of such joint committee for the proportions in which any expenditure on matters referred or delegated to that committee is to be borne as between the councils of the counties, boroughs, or urban districts or parts thereof forming the area for which the joint committee is constituted. In the case of any such joint committee, it shall suffice that a majority of the members are appointed by the councils of any of the counties, boroughs, or districts out of which or parts of which the area is formed.

(3) Before approving a scheme, the Board of Education shall take such measures as may appear expedient for the purpose of giving publicity to the provisions of the proposed scheme, and, before approving any scheme which provides for the appointment of more than one education committee, shall satisfy themselves that due regard is paid to the importance of the general co-ordination of all forms of education.

(4) A scheme establishing an education committee of the council of any county or county borough in Wales or of the county of Monmouth or county borough of Newport shall make such provision as appears necessary or expedient for making

the provisions of this Act relating to education committees applicable to the exercise by the local education authority of powers transferred from any county governing body constituted under the Welsh Intermediate Education Act, 1889.

(5) Any such scheme may contain such incidental or consequential provisions as may appear necessary or expedient.

PART II.

MEETINGS, &C. OF EDUCATION COMMITTEE.

(1) The council by whom an education committee is established may make regulations as to the quorum, proceedings, and place of meeting of that committee, but, subject to any such regulations, the quorum, proceedings, and place of meeting of the committee shall be such as the committee determine.

(2) The chairman of the education committee at any meeting of the committee shall, in case of an equal division of votes, have a second or casting vote.

(3) The proceedings of an education committee shall not be invalidated by any vacancy among the members thereof or by any defect in the election, appointment, or qualification of any members thereof.

(4) Minutes of the proceedings of an education committee shall be kept in a book provided for that purpose, and a minute of those proceedings, signed at the same or next ensuing meeting by a person describing himself as, or appearing to be, chairman of the meeting of the committee at which the minute is signed, shall be received in evidence without further proof.

(5) Until the contrary is proved, an education committee shall be deemed to have been duly constituted and to have power to deal with any matters referred to in the minutes of the committee.

PART III.

QUALIFICATION OF MEMBERS OF EDUCATION COMMITTEE.

(1) Any person shall be disqualified for being a member of an education committee who, by reason of holding an office or place of profit, or having any share or interest in a contract or employment, is disqualified for being a member of the council appointing the education committee, but no such disqualification shall apply to a person by reason only of his holding office in a school or college aided, provided, or maintained by the council.

(2) Teachers in a school maintained but not provided by the local education authority shall be in the same position as respects disqualification for office as members of the authority as teachers in a school provided by the authority.

Section 5.

SECOND SCHEDULE.

TRANSFER OF PROPERTY, &C. ON RELINQUISHMENT OF
POWERS AND DUTIES.

(1) Any property or rights acquired and any liabilities incurred by a council for the purpose of the performance of the powers and duties relinquished by them, including any property or rights vested or arising, or any liabilities incurred, under any local Act or trust deed, shall be transferred to the county council.

(2) Any loans transferred to a county council under this schedule shall, for the purpose of the limitation on the powers of the council to borrow, be treated as money borrowed under this Act.

56 & 57 Vict.
c. 73.

(3) Sections eighty-five to eighty-eight of the Local Government Act, 1894 (which contain transitory provisions), shall apply with respect to any transfer mentioned in this schedule, subject as follows:—

- (a) References to “the appointed day” and to “the passing of this Act” shall be construed as references to the date on which the relinquishment takes effect; and
- (b) any powers and duties relinquished by a council shall be deemed to be powers and duties transferred from that council; and
- (c) subsections (4) and (5) of section eighty-five shall not apply.

(4) The officers of any authority whose property, rights, and liabilities are transferred under this schedule to a county council shall be transferred to and become the officers of that council, but that council may abolish the office of any such officer whose office they deem unnecessary.

(5) Every officer so transferred shall hold his office by the same tenure and on the same terms and conditions as before the transfer, and while performing the same duties shall receive not less salary or remuneration than theretofore, but if any such officer is required to perform duties which are not analogous to or which are an unreasonable addition to those which he is required to perform at the date of the transfer,

he may relinquish his office, and any officer who so relinquishes his office, or whose office is abolished, shall be entitled to compensation under this schedule.

(6) Subject to the provisions of the School Teachers (Superannuation) Act, 1918, any local education authority who have established any pension scheme, or scheme for the superannuation of their officers, may admit to the benefits of that scheme any officers transferred under this Schedule on such terms and conditions as they think fit.

s & 9 Geo. 5.
c. 55.

(7) Section one hundred and twenty of the Local Government Act, 1888, which relates to compensation to existing officers, shall apply as respects officers transferred under this schedule and also (with the necessary modifications) to any other officers who, by virtue of this Schedule or anything done in pursuance or in consequence of this Schedule, suffer direct pecuniary loss by abolition of office or by diminution or loss of fees or salary, in like manner as it applies to officers transferred under this schedule, subject as follows:—

- (a) References in that section to “the passing of this Act” shall be construed as references to the date on which the relinquishment takes effect; and
- (b) Any reference to powers transferred shall be construed as a reference to property transferred; and
- (c) Any expenses shall be paid out of the fund or rate out of which the expenses of a county council under this Act are paid, and, if any compensation is payable otherwise than by way of an annual sum, the payment of that compensation shall be a purpose for which a council may borrow for the purposes of this Act; and
- (d) The county council may if they think fit take into account continuous service under any school boards or school attendance committees in order to calculate the total period of service of any officer entitled to compensation under this Schedule.

(8) Section sixty-eight of the Local Government Act, 1894 (which relates to the adjustment of property and liabilities), shall apply with respect to any adjustment required for the purposes of this Schedule.

Section 30.

THIRD SCHEDULE.

MEETINGS AND PROCEEDINGS OF MANAGERS.

(1) A body of managers may choose their chairman, except in cases where there is an ex-officio chairman, and regulate their quorum and proceedings in such manner as they think fit, subject, in the case of the managers of a school provided by the local education authority, to any directions of that authority :

Provided that the quorum shall not be less than three, or one-third of the whole number of managers, whichever is the greater.

(2) Every question at a meeting of a body of managers shall be determined by a majority of the votes of the managers present and voting on the question, and in case of an equal division of votes the chairman of the meeting shall have a second or casting vote.

(3) The proceedings of a body of managers shall not be invalidated by any vacancy in their number, or by any defect in the election, appointment or qualification of any manager.

(4) A manager of a school not provided by the local education authority appointed by that authority or by the minor local authority, shall be removable by the authority by whom he is appointed, and any such manager may resign his office.

(5) The body of managers shall hold a meeting at least once in every three months.

(6) Any two managers may convene a meeting of the body of managers.

(7) The minutes of the proceedings of every body of managers shall be kept in a book provided for that purpose.

(8) A minute of the proceedings of a body of managers, signed at the same or the next ensuing meeting by a person describing himself as, or appearing to be, chairman of the meeting at which the minute is signed, shall be received in evidence without further proof.

(9) The minutes of a body of managers shall be open to inspection by the local education authority.

(10) Until the contrary is proved, a body of managers shall be deemed to be duly constituted and to have power to deal with the matters referred to in their minutes.

FOURTH SCHEDULE.

Sections 38,
39 and 73.

PART I.

TRANSFERS OF SCHOOLS AND INSTITUTIONS.

• (1) An arrangement for transferring to the local education authority a school or institution may, subject as hereinafter provided, be made by the managers, who in making such an arrangement may act by resolution or otherwise as follows:—

- (a) Where there is a trust deed of the school or institution and that trust deed provides any manner in which or any assent with which a resolution or act binding the managers is to be passed or done, then in accordance with the provisions of that trust deed:
- (b) Where there is no such trust deed, or the trust deed contains no such provisions, then in the manner and with the assent, if any, in and with which it may be shown to the Board of Education to have been usual for a resolution or act binding the managers to be passed or done:
- (c) If no manner or assent can be shown to have been usual, then by a resolution passed by a majority of not less than two-thirds of those members of their body who are present at a meeting of the body summoned for the purpose, and vote on the question, and with the assent of any other person whose assent under the circumstances appears to the Board of Education to be requisite.

(2) No such arrangement shall be of any effect unless—

- (a) the Board of Education, and
- (b) if there are annual subscribers to the school or institution, a majority not being less than two thirds in number, of those of the annual subscribers who are present at a meeting duly summoned for the purpose, and vote on the question,

consent to the arrangement.

(3) An arrangement under this Schedule may provide for an absolute conveyance to the local education authority of all the interest in the premises of the school or institution possessed by the managers or by any person who is trustee for them or for the school or institution, or for the lease of the same with or without restrictions, and either at a nominal rent or otherwise, to that authority, or for the use by the authority of the premises during part of the week, and for the use of the same by the managers or some other person during the remainder of the week, or for any arrangement that may be agreed upon.

(4) Any arrangement under this Schedule may also provide for the transfer or application of any endowment belonging to the school or institution, or for the local education authority undertaking to discharge any debt charged on the school not exceeding the value of the interest in the premises or endowment transferred to them.

(5) Where any arrangement is made under this Schedule, the managers may, whether the legal interest in the premises or endowment is vested in them or in some person as trustee for them or the school or institution, convey to the local education authority all such interest in the schoolhouse and endowment as is vested in them or in the trustee, or such smaller interest as may be required under the arrangement.

(6) Nothing in this Schedule shall authorise the managers to transfer any property which is not vested in them, or a trustee for them, or held in trust for the school; and where any person has any right given him by the trusts of the school or institution to use the school or institution for any particular purpose independently of the managers, nothing in this Schedule shall authorise any interference with that right except with the consent of that person.

(7) The Board of Education shall consider and have due regard to any objections and representations respecting a proposed transfer of a school or institution under this Schedule which may be made by any person who has contributed to the establishment of the school or institution.

(8) Where in the case of any proposed transfer of a school or institution under this Schedule it appears to the Board of Education that there is any trustee of the school or institution who is not a manager, they shall cause the managers to serve on that trustee, if his name and address are known, such notice as the Board think sufficient, and the Board shall consider and have due regard to any objections and representations he may make respecting the proposed transfer.

(9) Where a transfer of a school or institution is made in pursuance of an arrangement under this Schedule, the consent of the Board of Education shall, after the expiration of six months from the date of the transfer, be conclusive evidence that the arrangement has been made in conformity with this Act.

(10) Where there is any instrument declaring the trusts of the school or institution and that instrument contains any provision for the alienation of the school or institution by any persons or in any manner or subject to any consent, any arrangement under this Schedule shall be made by the persons in the manner and with the consent so provided.

(11) In this Schedule the expression "premises" in relation to an elementary school means a schoolhouse as defined by this Act.

PART II.

RE-TRANSFERS OF SCHOOLS.

(1) Where any elementary school or any interest therein has been transferred in pursuance of an arrangement under Part I. of this Schedule or under the corresponding provisions of any enactment repealed by this Act to the local education authority or their predecessors in title, the local education authority may, by a resolution passed as herein-after mentioned, and with the consent of the Board of Education, re-transfer that school or interest therein to a body of managers qualified to hold the same under the trusts of the school as they existed before the transfer to the authority, and upon the re-transfer may convey all the interest in the school-house and in any endowment belonging to the school vested in the local education authority.

(2) A resolution for the purpose of this Part of this Schedule may be passed by a majority of not less than two thirds of those members of the local education authority who are present at a meeting duly convened for the purpose, and vote on the question.

(3) The Board of Education shall not give their consent to any re-transfer under this Schedule unless they are satisfied that any money expended upon the school out of a loan raised by the local education authority or their predecessors has been or will on the completion of the re-transfer be paid to the authority.

FIFTH SCHEDULE.

Section 111.

PROVISIONS AS TO THE COMPULSORY ACQUISITION OF LAND.

(1) Where a local education authority propose to purchase land compulsorily under this Act, the local education authority may submit to the Board of Education an order putting in force as respects the land specified in the order the provisions of the Lands Clauses Acts with respect to the purchase and taking of land otherwise than by agreement.

(2) An order under this Schedule shall be of no force unless and until it is confirmed by the Board, and the Board may confirm the order either without modification or subject to

such modifications as they think fit, and an order when so confirmed shall, save as otherwise expressly provided by this Schedule, become final and have effect as if enacted in this Act; and the confirmation by the Board shall be conclusive evidence that the requirements of this Act have been complied with, and that the order has been duly made and is within the powers of this Act.

(3) The order shall be in the prescribed form, and shall contain such provisions as the Board may prescribe for the purpose of carrying the order into effect, and of protecting the local education authority and the persons interested in the land, and shall incorporate, subject to the necessary adaptations—

- (a) the Lands Clauses Acts (except section one hundred and twenty-seven of the Lands Clauses Consolidation Act, 1845) as modified by the Acquisition of Land (Assessment of Compensation) Act, 1919; and
- (b) sections seventy-seven to eighty-five of the Railways Clauses Consolidation Act, 1845.

8 & 9 Vict.
c. 18.
9 & 10 Geo. 5.
c. 57.
8 & 9 Vict.
c. 20.

(4) The order shall be published by the local education authority in the prescribed manner, and such notice shall be given both in the locality in which the land is proposed to be acquired, and to the owners, lessees, and occupiers of that land as may be prescribed.

(5) If within the prescribed period no objection to the order has been presented to the Board by a person interested in the land, or if every such objection has been withdrawn, the Board shall without further inquiry confirm the order unless they are of opinion that the land is unsuited for the purpose for which it is proposed to be acquired; but, if such an objection has been presented and has not been withdrawn, the Board shall forthwith cause a public inquiry to be held in the locality in which the land is proposed to be acquired, and the local education authority and all persons interested in the land and such other persons, as the person holding the inquiry in his discretion thinks fit to allow, shall be permitted to appear and be heard at the inquiry.

(6) Where the land proposed to be acquired under the order consists of or comprises land situate in London, or a borough, or urban district, the Board shall appoint an impartial person, not in the employment of any Government Department, to hold the inquiry as to whether the land proposed to be acquired is suitable for the purposes for which it is sought to be acquired, and whether, having regard to the extent or situation of the land and the purposes for which it is used, the land can be acquired without undue detriment to the persons interested therein or the owners of adjoining land, and such person shall have for the purpose of the inquiry all

the powers of an inspector of the Ministry of Health, and, if he reports that the land, or any part thereof, is not suitable for the purposes for which it is sought to be acquired, or that, owing to its extent or situation or the purpose for which it is used, it cannot be acquired without such detriment as aforesaid, or that it ought not to be acquired except subject to the conditions specified in his report, then, if the Board confirm the order in respect of that land, or part thereof, or, as the case may require, confirm it otherwise than subject to such modifications as are required to give effect to the specified conditions, the order shall be provisional only, and shall not have effect unless confirmed by Parliament.

Where no part of the land is so situated as aforesaid, before confirming the order, the Board shall consider the report of the person who held the inquiry, and all objections made thereat.

(7) Where the land proposed to be acquired is the site of an ancient monument or other object of archæological interest or is the property of any local authority or has been acquired by any corporation or company for the purposes of a railway, dock, canal, water or other public undertaking or at the date of the order forms part of any park, garden or pleasure ground or is otherwise required for the amenity or convenience of any dwelling house, the order shall be provisional only and shall not have effect unless confirmed by Parliament.

(8) In construing for the purposes of this Schedule or any order made thereunder any enactment incorporated with the order, this Act together with the order shall be deemed to be the special Act, and the local education authority shall be deemed to be the promoters of the undertaking.

(9) Where the land is glebe land or other land belonging to an ecclesiastical benefice, the order shall provide that sums agreed upon or awarded for the purchase of the land, or to be paid by way of compensation for the damage to be sustained by the owner by reason of severance or other injury affecting the land, shall not be paid as directed by the Lands Clauses Acts, but shall be paid to the Ecclesiastical Commissioners to be applied by them as money paid to them upon a sale, under the provisions of the Ecclesiastical Leasing Acts, of land belonging to a benefice.

(10) In this Schedule the expression "prescribed" means prescribed by the Board of Education.

SIXTH SCHEDULE.**PROVISIONS WITH RESPECT TO PARLIAMENTARY GRANTS
TO ELEMENTARY SCHOOLS.**

(1) No parliamentary grant shall be made to any elementary school which is not a public elementary school within the meaning of this Act.

(2) No parliamentary grant shall be made in aid of the building, enlarging, improving, or fitting up of an elementary school.

(3) The conditions required to be fulfilled by an elementary school in order to obtain an annual parliamentary grant shall be those contained in the education code, and shall amongst other things provide—

(a) that such grant shall not be made in respect of any instruction in religious subjects; and

(b) that the income of the school shall be applied only for the purpose of public elementary schools;

but such conditions shall not require that the school shall be in connexion with a religious denomination or that religious instruction shall be given in the school, and shall not give any preference or advantage to any school on the ground that it is or is not provided by a local education authority.

(4) Where required for the purpose of bringing the accounts of a school to a close before the end of the financial year of the school, the Board of Education may calculate any parliamentary grant in respect of a month or other period less than a year.

SEVENTH SCHEDULE.**ENACTMENTS REPEALED.**

Session and Chapter.	Title or Short Title.	Extent of Repeal.
33 & 34 Vict. c. 75.	The Elementary Education Act, 1870.	The whole Act so far as unrepealed, except sections one and two, section three (so far as it is required for the interpretation of the unrepealed portions of the Act), and sections seventy-five, seventy-eight and eighty-three.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
36 & 37 Vict. c. 86.	The Elementary Education Act, 1873.	The whole Act.
37 & 38 Vict. c. 39.	An Act to provide for the exception of the borough of Wenlock from the category of boroughs under the Elementary Education Act, 1870.	The whole Act.
39 & 40 Vict. c. 79.	The Elementary Education Act, 1876.	The whole Act.
40 & 41 Vict. c. 60.	The Canal Boats Act, 1877.	Section six and in section fourteen the definition of parent.
43 & 44 Vict. c. 23.	The Elementary Education Act, 1880.	The whole Act.
47 & 48 Vict. c. 75.	The Canal Boats Act, 1884.	Sections five and six.
54 & 55 Vict. c. 61.	The Schools for Science and Art Act, 1891.	The whole Act.
56 & 57 Vict. c. 42.	The Elementary Education (Blind and Deaf Children) Act, 1893.	The whole Act.
60 & 61 Vict. c. 5.	The Voluntary Schools Act, 1897.	The whole Act.
62 & 63 Vict. c. 32.	The Elementary Education (Defective and Epileptic Children) Act, 1899.	The whole Act.
62 & 63 Vict. c. 33.	The Board of Education Act, 1899.	Sections three and four.
63 & 64 Vict. c. 53.	The Elementary Education Act, 1900.	The whole Act.
1 Edw. 7. c. 22.	The Factory and Workshop Act, 1901.	In section one hundred and thirty-four the words "or " for any purpose con- " nected with the em- " ployment in labour or " elementary education " of the young person " or child."

Session and Chapter.	Title or Short Title.	Extent of Repeal.
2 Edw. 7. c. 42.	The Education Act, 1902.	The whole Act.
3 Edw. 7. c. 24.	The Education (London) Act, 1903.	The whole Act, except paragraph 9 of the First Schedule.
3 Edw. 7. c. 45.	The Employment of Children Act, 1903.	The whole Act, except so far as it relates to Scotland or Ireland.
4 Edw. 7. c. 15.	The Prevention of Cruelty to Children Act, 1904.	The whole Act so far as unrepealed, except so far as it relates to Scotland or Ireland, and except section twenty-seven.
4 Edw. 7. c. 18.	The Education (Local Authority Default) Act, 1904.	The whole Act.
6 Edw. 7. c. 57.	The Education (Provision of Meals) Act, 1906.	The whole Act.
7 Edw. 7. c. 43.	The Education (Administrative Provisions) Act, 1907.	The whole Act, except sections two, eight, sixteen and seventeen.
8 Edw. 7. c. 67.	The Children Act, 1908.	Section one hundred and twenty-two.
9 Edw. 7. c. 13.	The Local Education Authorities (Medical Treatment) Act, 1909.	The whole Act.
9 Edw. 7. c. 29.	The Education (Administrative Provisions) Act, 1909.	The whole Act.
10 Edw. 7. and 1 Geo. 5. c. 37.	The Education (Choice of Employment) Act, 1910.	The whole Act.
1 & 2 Geo. 5. c. 32.	The Education (Administrative Provisions) Act, 1911.	The whole Act, except sections four and five.
4 & 5 Geo. 5. c. 20.	The Education (Provision of Meals) Act, 1914.	The whole Act.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
4 & 5 Geo. 5. c. 45.	The Elementary Education (Defective and Epileptic Children) Act, 1914.	The whole Act.
8 & 9 Geo. 5. c. 39.	The Education Act, 1918.	The whole Act, except sections fourteen, forty-two, forty-five, forty-seven, and fifty-two.
9 & 10 Geo. 5. c. 21.	The Ministry of Health Act, 1919.	Paragraph (d) of subsection (1) of section three.
9 & 10 Geo. 5. c. 41.	The Education (Compliance with Conditions of Grant) Act, 1919.	The whole Act.

CHAPTER 52.

An Act to amend the Exchequer and Audit Departments Acts, 1866 and 1889.

[19th August 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Every appropriation account shall be examined by the Comptroller and Auditor General on behalf of the House of Commons, and in the examination of such accounts the Comptroller and Auditor General shall satisfy himself that the money expended has been applied to the purpose or purposes for which the grants made by Parliament were intended to provide and that the expenditure conforms to the authority which governs it.

Examination of appropriation accounts.

(2) The Comptroller and Auditor General, after satisfying himself that the vouchers have been examined and certified as correct by the accounting department, may, in his discretion and having regard to the character of the departmental examination, in any particular case